97 West 169th Street RFP

Highbridge, Bronx



Request for Proposals

Issue Date: December 21, 2018
Pre-Submission Conference: January 25, 2019
Submission Deadline: April 4, 2019

NYC
Department of
Housing Preservation
& Development

Mayor, Bill de Blasio
Deputy Mayor, Housing and Economic Development, Alicia Glen
Commissioner, Department of Housing Preservation and Development, Maria Torres-Springer

Table of Contents

I. INTRODUCTION 3

II. DEFINITIONS 4

III. SUBMISSION INSTRUCTIONS 7

IV. PROJECT OVERVIEW 8

A. PROJECT SNAPSHOT 8
B. PROJECT GOALS 9
C. SITE CONTEXT 9
D. NEIGHBORHOOD CONTEXT 11

V. SELECTION PROCESS 16

A. SUBMISSION 16
B. REVIEW CRITERIA 17
C. SELECTION 18

VI. SUBMISSION REQUIREMENTS AND COMPETITIVE PREFERENCES 19

A. DEVELOPMENT TEAM EXPERIENCE AND CAPACITY 19
B. FINANCING AND AFFORDABILITY 21
C. DEVELOPMENT PROGRAM AND COMMUNITY ECONOMIC DEVELOPMENT 23

VII. SUBMISSION CONTENT AND COMPLETENESS 26

VIII. DEVELOPER OBLIGATIONS 33

IX. CONDITIONS, TERMS, AND LIMITATIONS 40

X. CONFLICTS OF INTEREST 42

XI. APPENDIX 43

I. INTRODUCTION

Request for Proposals (RFP). In May 2014, Mayor de Blasio released *Housing New York: A Five-Borough, Ten-Year Plan,* which commits to the preservation or new construction of 200,000 affordable homes by 2024. The *Plan*'s crucial goals include fostering diverse and thriving neighborhoods, anchored by quality affordable housing for the diverse communities of New York City. In October 2017, the de Blasio administration announced the success of Housing New York and updated the plan to increase its goal for the construction and preservation of affordable homes by an additional 100,000 homes bringing the total to 300,000 affordable apartments. In furtherance of the vision set forth in *Housing New York*, the City of New York ("City"), through its Department of Housing Preservation and Development ("HPD"), is pleased to release this Request for Proposals (RFP) to develop a high-quality, sustainable, and mixed-use housing development ("Project") in the Highbridge neighborhood of the Bronx.

97 West 169th Street Site. This Development Site is owned by the City and located at 97 West 169th Street, Bronx, New York (Community District 4).

HPD is inviting all qualified developers ("Respondents") to submit complete responses ("Submissions") to this RFP for the development of the Project. The City will convey the Site subject to a remainder interest, so that title to the Project will revert to the City upon expiration of the regulatory period unless the parties mutually agree to an additional term of affordability.

Development Teams

Qualified Respondents may be for-profit, non-profit, or joint venture entities that demonstrate the experience and capacity to implement the Project in accordance with community development objectives and long term equitable investments in neighborhoods. In furtherance of HPD's commitment to community development, HPD encourages responses from Minority and/or Women Owned Business Enterprises ("M/WBEs"), as well as Community Housing Development Organizations ("CHDOs") and Community Development Corporations ("CDCs") that bring enhanced and tangible community development benefits to the proposed Project. Respondents may include Community Land Trusts (CLTs).

HPD is committed to increasing opportunities for, and strengthening the capacity of, for- and non- profit developers, in order to expand the pool of affordable housing development firms available to participate in *Housing New York.* HPD encourages potential Respondents to assemble an experienced, complete, and competitive development team ("Development Team").

Jerome Avenue Rezoning Points of Agreement

In 2018, the Highbridge, Concourse, Mt. Eden, Mt. Hope, University Heights, and Morris Heights neighborhoods were rezoned along the Jerome Avenue Corridor as part of the Jerome Avenue Neighborhood Plan to advance the development and preservation of affordable housing. This rezoning was the result of a collaborative planning process undertaken by the City and the community. The Jerome Avenue Points of Agreement is an accompanying agreement that identifies the 97 West 169th Street Site for senior affordable housing. The Development Site is subject to the affordability and workforce provisions outlined in the Jerome Avenue Rezoning Points of Agreement (see Appendix B).

II. DEFINITIONS

Area Median Income (AMI)
The median income levels, as modified by household size, for the New York Metropolitan Statistical Area as determined from time to time by the federal Department of Housing and Urban Development (HUD). For 2018, 100% of the AMI is $104,300 for a family of four and $73,100 for an individual.

CEQR
City Environmental Quality Review

CDC
Community Development Corporation

CHDO
Community Housing Development Organization

City
The City of New York

DCP
The New York City Department of City Planning

DEP
The New York City Department of Environmental Protection

DOHMH
The New York City Department of Health and Mental Hygiene

DPR
The New York City Department of Parks and Recreation

Developer
The entity or entities selected by the City to commence negotiations regarding the development of the Site(s). The entity or entities will provide equity, secure financing, assemble a Development Team, design, develop, build, market, and manage the Project.

Development Team
The Developer and other entities that bring the necessary expertise and experience to develop and manage the Project, such as experts in affordable housing development and finance, marketing and property management (residential and commercial, if applicable), design and construction, and community development.

NYCEDC
The New York City Economic Development Corporation

FAR
Floor Area Ratio

ESA
Environmental Site Assessments

EIS
Environmental Impact Statement

FMR
Fair Market Rent

HCR
The New York State Division of Housing and Community Renewal

HDC
The New York City Housing Development Corporation

HPD
The New York City Department of Housing Preservation and Development

HUD
The United States Department of Housing and Urban Development

LDA
Land Disposition Agreement

MIH
Mandatory Inclusionary Housing

M/WBE
Minority and/or Women Business Enterprise

Negotiation Letter
The written notification sent by HPD to the Developer selected under this Submission regarding the commencement of negotiations.

OER
The Mayor's Office of Environmental Remediation

Principal
An individual, partnership, limited liability company, corporation, or other not-for-profit or for-profit entity that will act as the general partner, officer, or managing member of the Respondent, or any entity, known limited partner, or other member that has at least a 10% ownership interest in the Respondent.

Project
The development proposed for the Site(s), as further described in this Request.

Proposal
Used to describe the Project, or elements of the Project, proposed for the Site(s).

Request
Request for Proposals (RFP)

Respondent
An individual, partnership, limited liability company, corporation, joint venture, Community Land Trust, or other entity that offers a Submission in response to this Request.

RFP
Request for Proposals

SBS
The New York City Department of Small Business Services

Site(s)
The property to be developed by a Developer selected under this Request.

Submission
The proposed Project from the Development Team in response to this Request

UDAAP
A state statute authorizing the City to convey City-owned property, make loans, and grant tax exemptions. Before the City can take such actions, the City Council must approve or waive designation of an Urban Development Action Area and approve an Urban Development Action Area Project. For a disposition of City-owned property or the grant of a tax exemption, additional approvals are required.

Uniform Land Use Review Procedure (ULURP)
The process, set forth in the City Charter, prescribing the City's land use review process, including public hearings and several levels of government approvals. Actions requiring ULURP include, among others, changes to the City Map, designation or change of zoning districts, Special Permits within the New York City Zoning Resolution requiring approval of the City Planning Commission (CPC), and disposition of City-owned property.

III. SUBMISSION INSTRUCTIONS

RFP Title
97 West 169th Street RFP

Package
One (1) bound original, signed by an authorized representative of the Respondent
One (1) bound copy
One (1) flash drive containing all components of the Submission, with separate files or folders for each tab as well as the complete submission in one PDF file. All PDFs must be searchable.

Original and copy must be bound in a standard 3-ring view binder with the following information clearly printed on the front view cover:

- Project Title
- Respondent Name
- Project Site
- Submission Date

Delivery Address
Submissions must be delivered by hand to:

Department of Housing Preservation and Development
Office of Neighborhood Strategies, Predevelopment Planning Unit
100 Gold Street, 9-X Area
New York, NY 10038
Attention: Zlata Kobzantsev

Due Date
April 4, 2019
4:00 p.m. (Late submissions will not be accepted)

Pre-Submission Conference
Date: **Friday, January 25, 2019**
Time: 10:30 a.m.
Location:100 Gold Street, Room 1R, New York, NY 10038

HPD strongly recommends that interested Respondents attend this pre-submission conference, as this will be the only opportunity to ask questions and receive answers in person. Responses to all inquiries will be collectively provided at the pre-submission conference and in an addendum, posted on HPD's website and sent to all prospective Respondents. Any updates and/or additional communications regarding this RFP will also be posted here.

Conference Access for People with Disabilities. Please send requests for accommodation to: 97west169stRFP@hpd.nyc.gov.

Communications
All communications and inquiries regarding this RFP, are to be directed in writing to HPD, and specifically to Zlata Kobzantsev at: 97west169stRFP@hpd.nyc.gov. All written questions must be submitted by March 15, 2019 to be included in the RFP addendum.

Lobbying and Advocacy
In order to preserve and maintain the integrity of the selection process, HPD will not consider or accept any advocacy or letters of support from any person or organization, including elected officials, attempting to influence the selection process.

IV. PROJECT OVERVIEW

The Site presents a unique opportunity to achieve the City's broader development goals and provide much-needed affordable housing, community amenities and services, and other improvements for the community through high-quality, mixed-use development.

A. Project Snapshot

Site Location	The Site is located at 97 West 169th Street. It is located on West 169th Street, between Nelson Avenue and Shakespeare Avenue, in Bronx Community District 4. The Site consists of Block 2519, Lots 27 and 32.
Site Description	The Site is comprised of two vacant, City-owned parcels in the Highbridge neighborhood of the Bronx. The Site was mapped as parkland for the future development of Corporal Irwin Fischer Park. In 2017, New York State approved legislation to authorize the City to discontinue the use of Block 2519, Lots 27 and 32 as parkland and facilitate the construction of affordable housing.
Lot Size	Approximately 15,100 square feet.
Land Use / Zoning	The Site is located in an R7-1 Residence District.
Type of Development	Residential development with affordable housing (100% of the units) for seniors.
Disposition	The City will convey the Site subject to a remainder interest, so that title to the Project will revert to the City upon the expiration of the regulatory period unless the parties mutually agree to an additional term of affordability. These terms will be set forth in a Land Disposition Agreement (LDA) and deed.
Acquisition Price	Nominal
Project Funding	Financial Proposals can assume subsidy dollars available through the Senior Affordable Rental Apartments (SARA) term sheet.
Governmental Approvals – ULURP and UDAAP	The selected Project will require ULURP and City Council and Mayoral approvals. Anticipated land use actions requiring approval for development of the Site include disposition of City-owned property. In addition, the City Council must approve the project as a UDAAP project and must designate the land in the Project as a UDAAP area pursuant to Article XVI of the General Municipal Law.

1. PROJECT GOALS

Development Team Experience and Capacity

- Procure a Development Team that brings the resources, understanding, and experience to implement the proposed Project.
- Procure a Development Team that incorporates a community development approach.

Financing and Affordability

- Ensure that 100% of the residential units are affordable for seniors and comply with the HPD SARA Term Sheet.
- Establish a sound financial capital and operating budget that addresses the various elements of the development program.
    - If community facility or commercial spaces are included, they must generate enough rental income or the Development Team must provide equity to support all associated development costs inclusive of hard and soft costs.
- Maximize long-term affordability.

Development Program and Community Development

- Create a development program with affordable housing for seniors.
- Implement a development program that clearly addresses the Site and neighborhood context.

Design and Performance

- Design and develop a high-quality affordable building that is financially feasible.

2. SITE CONTEXT

Site Location and Description

The Site is located at 97 West 169th Street, on the midblock of West 169th Street between Nelson Avenue and Shakespeare Avenue. The Site is comprised of two adjacent tax lots on Block 2509 (Lots 27 and 32), totaling approximately 15,100 square feet. Both lots are vacant, City-owned parcels. The Site is bounded by West 169th Street to the south, a six-story senior building to the north and west, and two to three-story homes to the east.

In September 2017, State legislation approved non-open space uses for the Development Site. The remaining parkland on the northern side of this block, along with the demapped Corporal Irwin Fischer Place, will be developed by the DPR as Corporal Irwin Fischer Park.



Current Zoning

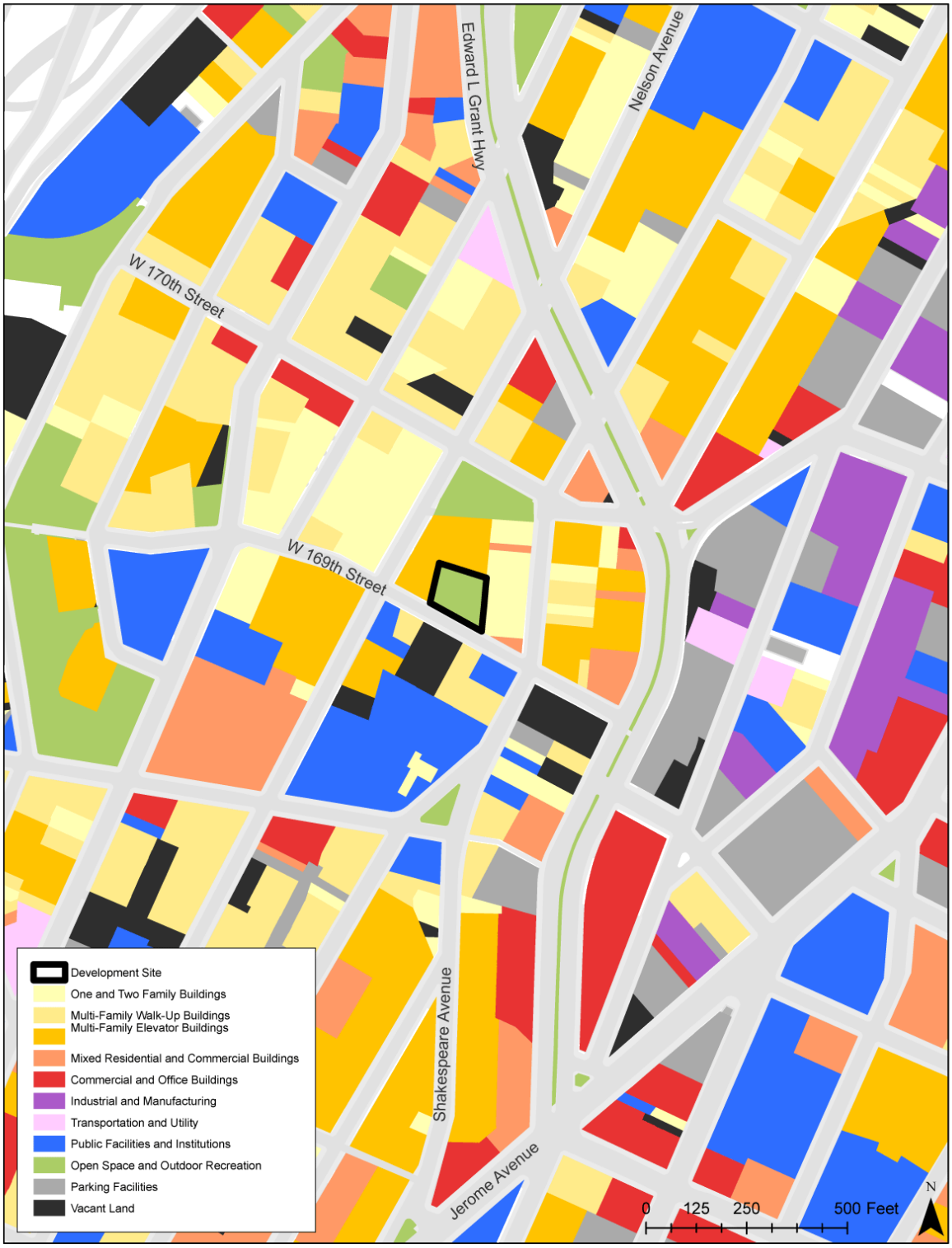
The Site is located in an R7-1 Residence District. This zoning designation allows for medium-density residential and community facility uses and is eligible for additional floor area pursuant to Affordable Independent Residences for Seniors (AIRS).

B. NEIGHBORHOOD CONTEXT

Neighborhood Land Uses

The Site is located in the Highbridge neighborhood and surrounded by a mix of low and medium density residential, mixed-use, and institutional buildings. The blocks surrounding the Site are predominantly residential, including one and two family homes and multifamily buildings. Public facilities and institutional uses in the area include the Highbridge Community Life Center, Help Project Samaritan, Good Shepherd Services, Sacred Heart School, Siena House, Woodycrest United Methodist Church, and P.S. 126. There are several open spaces in the area, including Bridge Playground, Ogden Plimpton Playground, Corporal Irwin Fischer Park, Mosaic Success Garden, Merriam Playground, Martin Luther King Triangle, Las Casitas Community Garden, Nelson Playground, Jerome Slope, and several other community gardens.

In March 2018, the City approved the Jerome Avenue rezoning, which rezones a 92-block stretch of Jerome Avenue and the surrounding area to facilitate residential development. The Site is located two blocks west of the rezoning area.


Edward L Grant Hwy
Nelson Avenue
W 170th Street
W 169th Street
Shakespeare Avenue
Jerome Avenue
Development Site
One and Two Family Buildings
Multi-Family Walk-Up Buildings
Multi-Family Elevator Buildings
Mixed Residential and Commercial Buildings
Commercial and Office Buildings
Industrial and Manufacturing
Transportation and Utility
Public Facilities and Institutions
Open Space and Outdoor Recreation
Parking Facilities
Vacant Land
0 125 250 500 Feet
N

Neighborhood Access

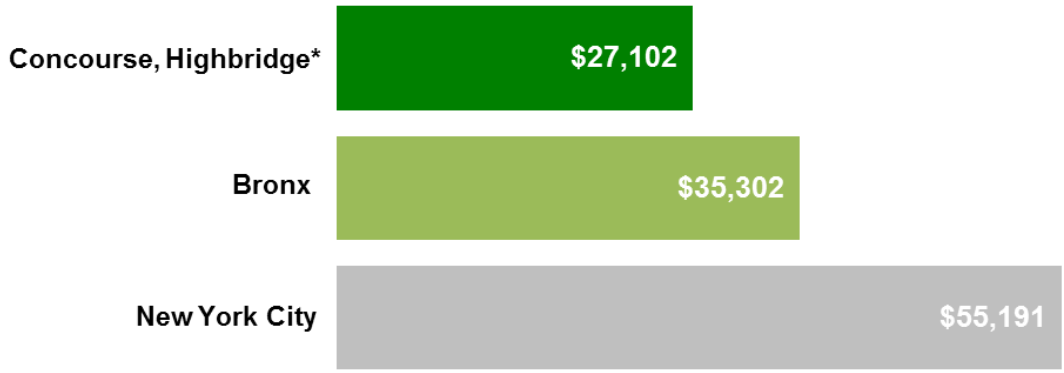
The area is well served by public transportation. The 167th Street and 170th Street stops of the 4 Subway line are within a ten minute walking distance of the Site. Bus service is also available via the Bx11, providing service between Longwood and the George Washington Bridge, the Bx13 providing service between Bronx Terminal Market and Washington Heights, and the Bx35 providing service between Hunts Point and Washington Heights.



Neighborhood Demographics

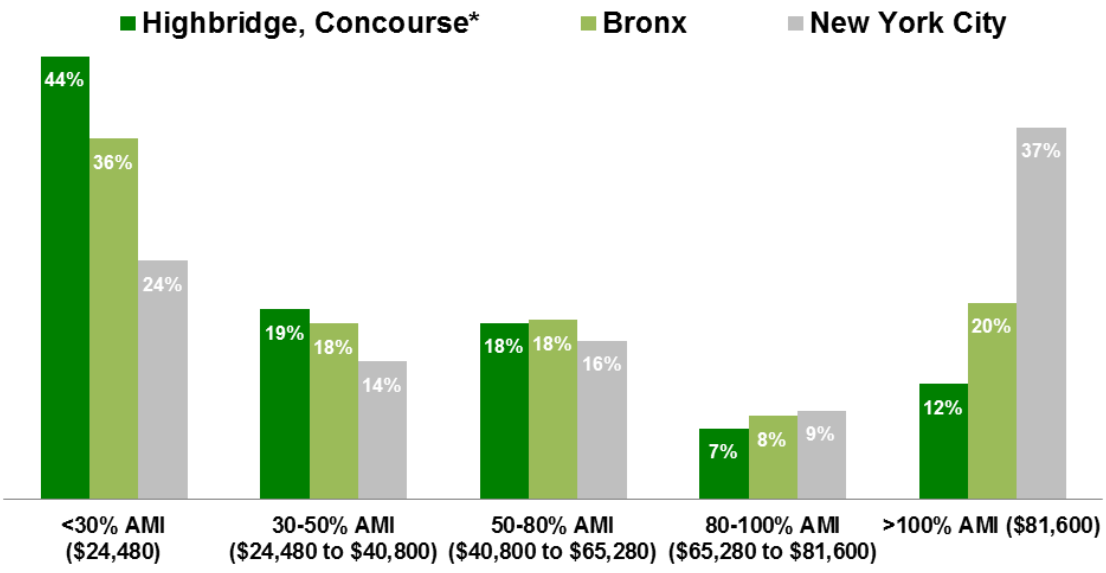
HPD is committed to furthering fair housing throughout New York City neighborhoods, which requires an understanding of the socioeconomic dynamics at the neighborhood level. The neighborhood profile information below highlights the demographic, economic, social, and housing characteristics of the neighborhood in which the Site is located. More detailed data can be found through the DOHMH and DCP websites.

a. Median Household Income



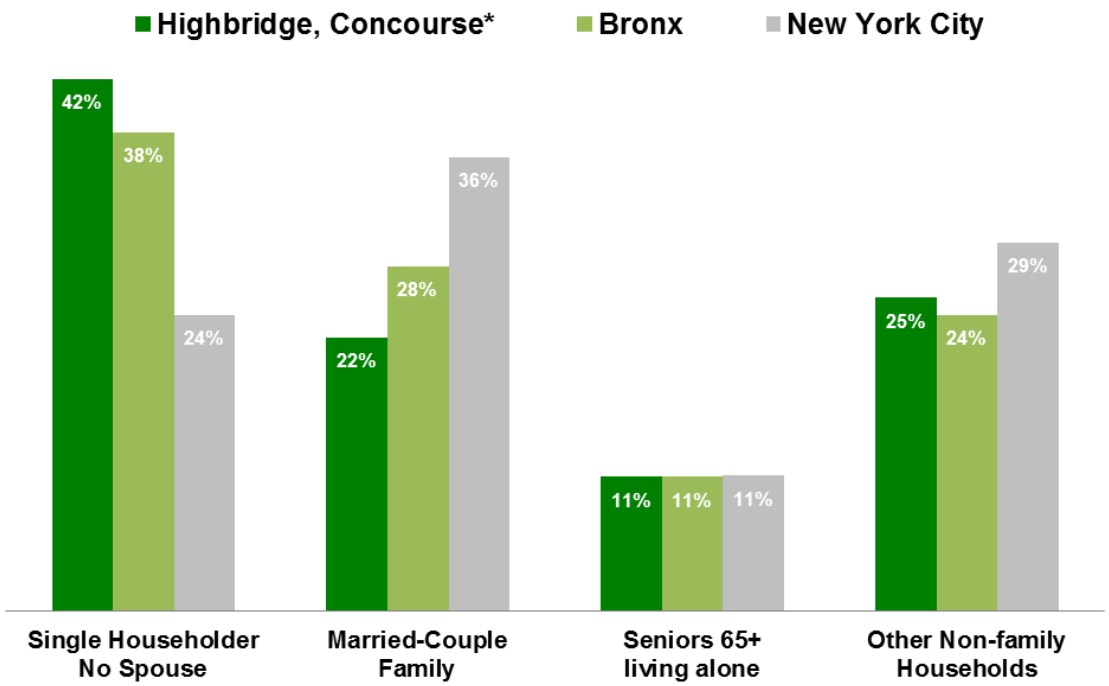
Source: ACS 2012-2016 5-Year Estimates
*Based on PUMA that approximates CD 04

b. Distribution of Households by Income Group



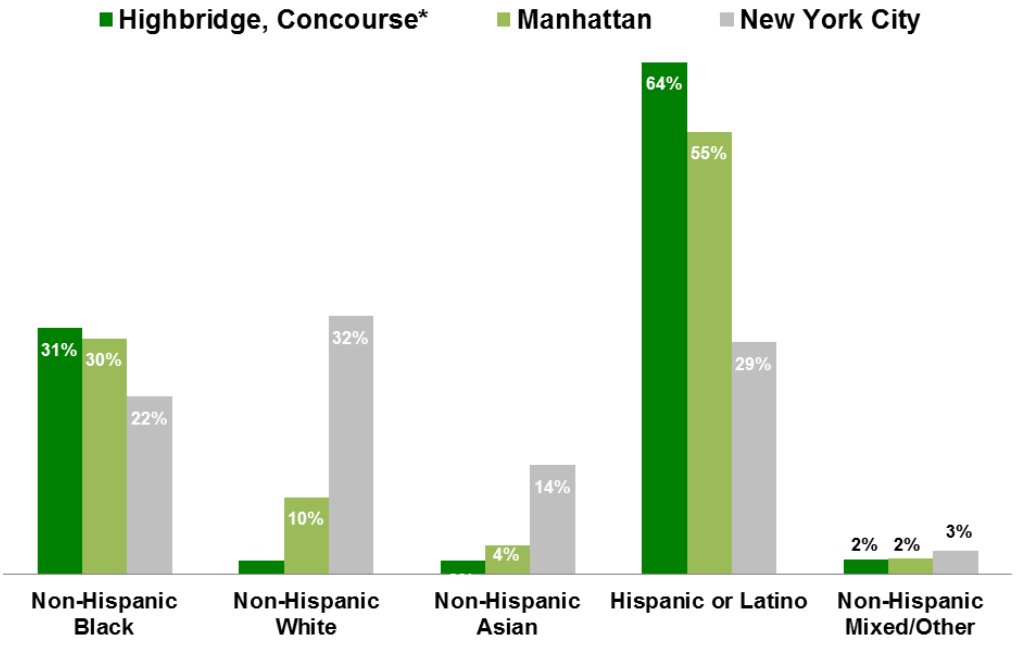
Source: ACS 2012-2016 5-Year Estimates
Income limits are for a three-person household (HUD 2016)
*Based on PUMA that approximates CD 04

c. Household Types



Approximate Total Households: 48,500
Source: ACS 2012-2016 5-Year Estimates
*Based on PUMA that approximates CD 04

d. Racial/Ethnic Composition



Approximate Total Number of Residents: 141,000
Source: ACS 2012-2016 5-Year Estimates
*Based on PUMA that approximates CD 04

V. SELECTION PROCESS

A. SUBMISSION

All Submissions must include the following contents to fully describe the Respondent's proposed Project(s) (See: Section VII. SUBMISSION CONTENT AND COMPLETENESS for more information).

TAB	CONTENTS	FORMS
Development Introduction		
A	Completeness Checklist and Respondent's Letter	A-1, A-2
B	Project Narrative / Development Summary	
C	Trade Secrets (optional)	
Development Team Experience and Capacity		
D	Developer Respondent Description	D-1, D-2
E	Development Team Experience and Capacity	E-1, E-2, E-3, E-4
F	Development Schedule/ Phasing Plan	
Financing and Affordability		
G	Financing Submission	G
H	Financing Letters of Interest and Historical Financing Letters of Interest/Award Letters	
I	Assets Statements	
Development Program and Community Development		
J	Development Program	I
K	Community and Economic Development	
Design and Performance		
L	Design Narrative	
M	Architectural and Urban Design Plans	

- Tabs must be in the order specified above, and run down the right-hand side of the bound original and copy.
- Forms are available for download from the HPD website.
- Forms E1-3 and G must also be submitted on a flash drive; additionally Forms E1-2 and G must be in Excel format.
- All forms must comply with the format associated with said form.
- All architectural plans must be on paper no larger than 11" x 17," and must be legible.
- Plans and documents must be in formats and paper size that are simple to copy/reproduce.

Submission Modifications

Modifications received after the submission deadline due date will not be considered. If HPD determines, upon review of a Submission, that any items are missing and/or incomplete, HPD, by written notification given to the Respondent, may permit the Respondent to provide or clarify such items. Failure to provide complete information in a timely fashion could result in rejection of the Submission.

Addenda and Extensions

HPD may amend or withdraw this Request at any time. In order to be considered, Submissions must conform to any amendments that may be issued to this Request. Amendments may include, without limitation, any requirements and terms or conditions contained in this Request. HPD will advise each respondent of any clarifications or revisions.

If, in HPD's judgment, additional time is required for Respondents to prepare their Submissions, HPD may grant an extension of the deadline for submission, and such extension will then be granted to all Respondents.

References and Requests for Further Clarification

A Submission constitutes permission from the Respondent for HPD to make such inquiries concerning the Respondent as HPD deems necessary. HPD may communicate with any of the Respondents, but is not obligated to do so. HPD may discuss the Submissions of any Respondent concurrently or sequentially, as HPD may determine. No Respondent has any rights against HPD arising from any such invitation to a discussion, or from any negotiations that may arise pursuant to the discussions.

Respondents must comply with all requests for further clarification and, if requested by HPD, appear for presentations or discussions. If any Respondent fails to do so within the time period given (or within any time extension that HPD may grant), HPD may deem this as a failure and act of non-compliance with the Request, which will permit HPD to select another Respondent or to solicit new Submissions. In furtherance and not in limitation of the foregoing, before a final selection is made, a Respondent may be required to produce more detailed information concerning the professional background of those persons who own and manage such Respondent, a report on the financial background of such Respondent, and information concerning the nature and status of any past or pending threatened charges or actions (including lawsuits, criminal or disciplinary actions, administrative proceedings by any governmental or regulatory agency or bankruptcy action) against such Respondent or any of its partners, directors, officers, employees, shareholders, subsidiaries, or affiliates, as the case may be.

B. REVIEW CRITERIA

The Development Team(s) will be selected through an open, competitive, and transparent juried selection process consisting of two stages: 1) Threshold Review and 2) Competitive Review.

Threshold Review

HPD will review each Submission according to the threshold requirements ("Threshold Requirements"), which are listed below. **The Submission must contain each Tab with all requested Forms and supporting documents**. Submissions that are not complete or do not conform to the requirements of this Request will be eliminated from further consideration, unless HPD permits the Respondent to correct the omission or provide further information through a request for clarification.

Threshold Requirements
Completeness of Submission and Conformance with Requirements
Development Team Experience and Capacity
• No Adverse Findings
• Comparable Development Experience
• Comparable Management Experience
• Development Team
• Development Schedule / Phasing Plan
Financing and Affordability
• Feasibility of Submission
• Ability to Finance
Development Program and Community Economic Development
• Development Program
• Community and Economic Development
Design and Performance
• Zoning Compliance

Competitive Review

Submissions that meet all Threshold Requirements will be comprehensively evaluated, and rated according to the competitive selection criteria ("Competitive Criteria") below. These criteria include both requirements and preferences. For example, a proposal will be scored on how strongly it meets the Submission requirements, but may also receive extra points for meeting preferences. Respondents may refer to Section VI. SUBMISSION REQUIREMENTS AND COMPETITIVE PREFERENCES and Section VII. SUBMISSION CONTENT AND COMPLETENESS, for specific guidance.

Competitive Criteria	Weight	
Development Team Experience and Capacity	25%	50%
Financing and Affordability	25%	
Development Program and Community Development	25%	50%
Design and Performance	25%	

HPD may request additional information, interviews, presentations, or site visits. The selected Respondent(s) will be chosen from among the highest rated Submissions. HPD may disapprove the inclusion of any member of a Respondent's Development Team and/or require the selected Respondent to substitute other individuals or firms.

C. SELECTION

Selection of one or more Developers under this Request means only that HPD will commence negotiations with such Respondent(s) regarding the Submission for the Sites.

Negotiation Letter

Upon such selection, HPD will send written notification ("Negotiation Letter" or "Letter") to the Developer regarding the commencement of negotiations. This Negotiation Letter will set forth certain information regarding the Project and procedures that will form the basis for such negotiation. Form A-2 is a Respondent's Letter that describes this process. Each Submission must include this letter signed on behalf of the Respondent by a Principal. HPD may terminate negotiations with or without cause after the issuance of such Negotiation Letter.

Disclosure

Each Developer who receives a Negotiation Letter from HPD must thereafter disclose all previous participation with City-assisted projects. Such Developer(s) and each of its Principals, and officers and related entities will be required to submit completed Disclosure Statements. HPD will provide copies of these forms upon request to any Respondent.

No Obligation

This Request does not represent any obligation or agreement whatsoever on the part of HPD. Any obligation or agreement on the part of HPD may only be incurred after HPD and the Developer enter into a written agreement approved as to form by the Corporation Counsel. HPD may use the Submissions pursuant to this Request as a basis for negotiation with Respondents as it deems appropriate. HPD may reject at any time any or all Submissions, amend or withdraw this Request in whole or in part, negotiate with one or more Respondents, and/or negotiate and dispose of the Site(s) on terms other than those set forth herein (including to parties other than those responding to this Request). HPD may also, at any time, waive compliance with, or change any of the terms and conditions of this Request, entertain modifications or additions to selected Submissions, or withdraw or add property from or to this Request.

VI. SUBMISSION REQUIREMENTS AND COMPETITIVE PREFERENCES

Submissions will be evaluated and scored based on a) responsiveness to all Threshold Requirements, b) the competitive quality, soundness, and strength of project characteristics that address all the requirements, including the Threshold Requirements, and c) whether the submission exceeds requirements by demonstrating a capacity to deliver on stated preferences that achieve broader public policy and community development objectives.

A. DEVELOPMENT TEAM EXPERIENCE AND CAPACITY

Threshold Requirements		**TAB**
No Adverse Findings	Submission may be rejected at any time during or after the evaluation process if there are any adverse findings in HPD's sole discretion, regarding the Respondent, any entity or individual associated with the Respondent, or any property owned and/or managed by them. (HPD may ask for a request for clarification).	D
Comparable Development Experience	At least one Principal must have, as Principal, successfully completed new construction or substantial rehabilitation of at least one mixed use project of at least sixty (60) residential units within the past seven (7) years.	E
Comparable Management Experience	*Residential*: At least one Principal (of Respondent, or the Respondent's Property Manager) must have experience managing at least sixty (60) residential units in New York City within the past seven (7) years. The Principal must have been the owner and manager, or the owner acting through a management entity, to fulfill this qualification.	E
Development Team	The Development Team must submit an Affirmative Capacity Statement attesting to their ability to undertake this Project within the timeframes delineated. At a minimum, the Development Team responding to this Request must include: architect and engineer; construction manager; real estate (with condominium experience) and land-use attorney, environmental planner and engineer.	D, E
Development Schedule/ Phasing Plan	A detailed schedule with construction commencing within 18-36 months from the issuance of the Negotiation Letter, and other Project specific key benchmarks. A phasing plan, if applicable.	F
Competitive Criteria		**TAB**
Developer	*Successful Experience* • Developing mixed-use urban projects • Developing multi-family urban projects using public and private financing sources. *Strong Capacity* • Current capacity to undertake, effectively project manage, and complete all necessary activities and obligations associated with the proposed Project within the proposed schedule.	E

	• Capacity will be determined by analysis of Respondent's current public and private development workload, other pending development obligations and financial guarantees. • Strength of organizational, project management and governance structure for the Project.	
Property Manager/ Special Needs Housing Operator	• Experience managing mixed-use residential buildings with commercial and/or community facility uses in comparable markets, if applicable. • Experience operating low income senior, formerly homeless, and/or supportive housing, if applicable. • Experience providing tenant social services and securing social service funding.	E
Consultant Team	*Design* • Experience designing and providing construction oversight on multi-family and mixed-use, high-performance, residential projects that were successfully completed within budget and on schedule. • Experience designing and providing construction oversight on projects that require a rail overbuild. *Planning and Zoning* • Experience in NYC zoning and environmental review and approval processes on comparable development Projects. *Environmental* • Experience in environmental engineering; and experience in sustainable design and development. • Experience in environmental review processes in New York City. *Construction Management* • Experience in construction and construction management of multi-family and mixed-use with a community facility, high-performance residential projects that were successfully completed within budget and on schedule. • Experience complying with labor and safety requirements for similar projects in New York City. *Marketing, Leasing/Sales* • Experience developing and implementing affirmative fair housing marketing plans. • Experience in leasing and/or sales with a comparable development program and market. *Legal* • Experience in affordable housing development and public/private development. • Experience in NYC land use and zoning.	E
Preferences		**TAB**
Community Development	Respondents that have a successful track record of tangible investments in community and economic development.	E

B. FINANCING AND AFFORDABILITY

Threshold Requirements		**TAB**
Affordability	100% of the units must be affordable to seniors.	G
Feasibility of Submission	The proposed Project must be in compliance with HPD-HDC Term Sheets, including requirements for units that serve very low and extremely low-income households. Market comparables must be provided for residential unit rents, and any additional income from other sources.	G
Ability to Finance	Asset statements must demonstrate capacity to secure pre-development, construction and permanent financing, for the proposed Project.	H
Competitive Criteria		**TAB**
Financing Proposal	Submissions shall include Financial Scenarios that support the Project included in this Submission, with the sources and uses that achieve housing affordability at the proposed levels. The Financial Scenarios shall be in accordance with current industry underwriting standards. Proposed total development costs and operating budgets must be within current industry parameters. Financial Scenarios will be evaluated based on the feasibility of the underwriting, including, but not limited to, the reasonableness of estimated development and operating costs, proposed rents and other income, the feasibility and terms of the financing sources, and the ability to support operating expenses, capital costs, and debt service to complete and operate the housing portion of the proposed Project. If Financial Scenarios include tax exempt bonds and 4% LIHTC financing, up to $75,000 per dwelling unit in subsidy will be available from the HPD SARA term sheet. If Financial Scenarios include 9% tax credit financing, up to $125,000 per dwelling unit in subsidy will be available from the HPD SARA term sheet. Developer Submissions that assume HDC bond financing (and subsidy financing, if applicable) must comply with all terms of the HDC Extremely Low and Low-income Affordability Program (ELLA) Term Sheet. If community facility or commercial spaces are included, they must generate enough rental income or the Development Team must provide equity to support all associated development costs, inclusive of hard and soft costs. Nonresidential income and equity assumptions must be described in detail and include information about funding sources and/or rental comparables. Financial Scenarios will also be evaluated based on the ability to maximize the regulatory term period.	G
Rents and Market Comparables	Rents for residential units or other income sources must be deemed realistic and substantiated by market comparables.	G
Financing Capacity	Financing capacity will be evaluated based on the strength of the Respondent's assets, bank, investor, or other lender references, and current and historical commitments that demonstrate the Respondent's ability to secure financing, meet lender's equity and other lending requirements,	G

	provide necessary guarantees, absorb cost overruns, and commence and complete construction of the proposed Project according to the proposed Development Schedule.	
Preferences		**TAB**
Maximum Leverage and Affordability	Submissions that maximize long-term affordability.	G
Extended Affordability	Submissions with a viable plan to extend affordability beyond the minimum regulatory period.	G

C. DEVELOPMENT PROGRAM AND COMMUNITY ECONOMIC DEVELOPMENT

Threshold Requirements		**TAB**
Development Program	*Affordability.* 100% of the total units must be affordable to seniors.	I
	Unit Types and Sizes. Submissions must have a distribution of unit types and sizes that complies with SARA Term Sheet and guidelines.	I
	Term of Restriction. Submissions must ensure that the affordable units remain in the rent stabilization system for the duration of the Project regulatory period, or as required by law, but in no case less than thirty (30) years.	I
Community Economic Development	*Local Hiring/M/WBE.* Submission includes a Hiring and Procurement plan for complying with the HireNYC and M/WBE Build-up Programs.	J
Competitive Criteria		**TAB**
Residential	The proposed residential development program will be evaluated within the context of New York City's commitment to affirmatively further fair housing. Consistent with the Fair Housing Act, the City and HPD implement a balanced approach to fair housing planning, taking meaningful action to address disparities in housing needs that increases access to opportunity, fosters inclusive communities, and facilitates integrated living patterns, in addition to combating discrimination, throughout New York City.	I
Commercial and/or Community Facility	Submissions must demonstrate that the uses contribute to the economic and social vibrancy of the neighborhood, address a neighborhood need, and enhance the current inventory of commercial or community uses in the neighborhood. They will be evaluated based on the soundness of tenancy, tenant mix, marketing, management, and lease terms to secure tenancy.	I
Community and Economic Development	*Hiring and Procurement:* Submissions must have a Hiring and Procurement Plan which includes strategies for local hiring and meeting the requirements of HireNYC and the M/WBE Build Up Program. Proposals must include a plan for outreach to residents of the Community District within which the development project is located related to employment opportunities generated by the proposed project including training programs, job placement activities, Applicants' own staffing practices, and/or Applicants' contracting practices on the proposed project. Additionally, development teams will be required to participate in HireNYC, a workforce development program which connects the City's real estate development projects to the City's workforce development services, as well as HPD's M/WBE Build Up Program. Proposals will be evaluated on the quality of this Hiring and Procurement Plan. (Note: 10% of the criteria points within this category will be awarded on the basis of the quality of this plan).	J
	Public Approvals: Submissions will be evaluated based on the strength and quality of the public approval outreach plan for the ULURP process.	J
Preferences		**TAB**
Community Engagement	Submissions that have a Community Engagement Plan that provides opportunities for meaningful community engagement in certain elements of the Project, including design and/or programming elements.	J

Minorities and Women in Development	Submissions that significantly exceed the requirements of the M/WBE Build-Up Program, and/or Respondents with certified M/WBEs as part of the development team.	J
Community Development	Submissions that include a plan for neighborhood investments and/or community programs or services.	J

D. DESIGN AND PERFORMANCE

Threshold Requirements		**TAB**
Zoning Compliance	*Zoning*: The Projects must conform and comply with all zoning requirements.	L
	Plans: Architectural and Urban Design Plans designed by a registered architect or engineer and meeting all submission requirements.	L
Competitive Criteria		**TAB**
Building Design	Designs will be evaluated based on the following factors described further in Zoning, Site Plan, and Building Design Guidelines and Site Specific Design Guidelines (Appendix B). • Site Capacity and Program Evaluation: how well the Submission integrates the development program, building parameters, and how well the proposed plan overcomes the challenges posed by site conditions. • Building Design: ○ Building Envelope/Exterior: how well the Submission contributes to the built environment and serves the pedestrian experience. ○ Building Plans/Interior: how well the Submission serves the resident experience, including design features for seniors and accommodations for aging in place. ○ Building Systems: how well the system provides environmental comfort, ease of management and operations, and high level of durability. • Design and Construction: building design is consistent with the Submission's proposed construction budget, schedule, and development program. • Design Value: exemplary design and construction methods that reduce or contain costs, create high-quality site and building designs, and achieve high development performance standards.	K, L
Site Planning and Urban Design	Designs, site planning, massings, building configuration, streetscape treatment, and relationship to surroundings will be evaluated based on the Project's contribution to the neighborhood.	L
Preferences		**TAB**
Excellence in Sustainability	Submissions that exceed minimum Development Design and Performance Requirements in one or more of the following categories, in furtherance of City policy goals to reduce water and energy consumption, manage storm water and heat island impacts, increase safety, strengthen neighborhood residential and commercial corridors, and increase community health, accessibility, and well-being of residents. (Submissions seeking competitive preferences are advised to consult: NYC Department of Design and	L

	Construction Resources.) • Sustainable Urban Site Design • Green Building: ○ Passive House Design ○ LEED	
Design Excellence	Designs that propose exceptional elements or amenities in public spaces or residential areas, especially responses that include architectural/urban context. (Submissions seeking competitive preferences are advised to consult: NYC Department of Design and Construction Resources.) • Designing New York: Quality Affordable Housing • Universal Design • Active Design: ○ Supplement: Affordable Designs for Affordable Housing ○ Supplement: Promoting Safety ○ Supplement: Shaping the Sidewalk Experience • Designing for Health • Aging in Place	L

VII. SUBMISSION CONTENT AND COMPLETENESS

Each Respondent must submit the forms and supporting documentation described below. Each copy of the Submission must be tabbed as indicated below, with tabs running down the right-hand side of the binder. Submissions that are incomplete or not in conformance with the requirements of this Request will be eliminated from further consideration.

Development Introduction

TAB A – Completeness Checklist and Respondent's Letter

- ☐ Form A-1. Completeness Checklist
- ☐ Form A-2. Respondent's Letter, printed on Respondent's letterhead and signed by an authorized representative.

TAB B – Project Narrative / Development Summary

- ☐ Project Narrative must introduce and provide an overview of the Submission, including the elements that distinguish the proposed Project, the qualifications of the Respondent and the Development Team.
- ☐ Form B. The Project Summary must provide a synopsis of the Submission's major elements, including the development program, financing program, and architecture and urban design.
- ☐ The Project Narrative and Project Summary must be concise and introduce all aspects of the Submission.

Tab C – Trade Secrets (optional)

Submissions and other materials submitted to HPD in response to this Request may be disclosed in accordance with the standards specified in the Freedom of Information Law, Article 6 of the Public Officers Law (FOIL). The entity submitting a Submission may provide in writing, at the time of submission, a detailed description of the specific information contained in its Submission which it has determined is a trade secret and which, if disclosed, would substantially harm such entity's competitive position. This characterization shall not be determinative, but will be considered by HPD when evaluating the applicability of any exemptions in response to a FOIL request.

Development Team Experience and Capacity

TAB D – Developer Respondent Description

- ☐ Form D-1. Development Team Information and Respondent Questionnaire, signed by Principal (if joint venture, principal of each entity must sign).
- ☐ Form D-2. (Non-profit corporation team members only).
- ☐ Organizational Structure. Chart or diagram of structure of partnership or joint venture, including percentages of ownership and investment, with a brief description of the type of entity or joint-venture and the roles and responsibilities of each party.
- ☐ Brief narrative describing the roles of each entity of the Development Team during construction and throughout the life of the Project. Any Submissions from a CLT must provide an organizational model that meets the requirements of the RFP.

Optional:

- ☐ Project Staffing and Governance Plan, with a brief narrative of any project management methods or tools that will be used to ensure an effective and collaborative public/private partnership.
- ☐ Organizational charts, schedules, and project budgets demonstrating project management approach and capacity to manage complex development projects within a public/private partnership.

TAB E – Development Team Experience and Capacity

- ☐ Form E-1. Residential Development Experience and Current Workload (include on flash drive)
- ☐ Form E-2. Residential Management Experience and Current Workload (include on flash drive)
- ☐ Form E-3. Management Questionnaire (include on flash drive)
- ☐ Form E-4. Commercial Management Experience, if applicable (include on flash drive)
- ☐ Brief narrative describing:
    - Experience that makes the Development Team uniquely suited to overcoming the challenges posed by the Site
    - Experience developing and managing high-quality mixed-use urban projects
    - Experience managing commercial and/or community facility spaces in mixed-use urban projects
    - Experience with community economic development, such as investments in community programs or services
- ☐ Note. A separate form must be provided for each Principal with residential management experience. Provide complete and accurate information about references.
- ☐ Note. A separate form must be provided for a Principal or managing agent proposed to manage the Development.

Other Members of Development Team

- ☐ Submit marketing materials, narrative statements, and/or portfolio list in graphic format that clearly describes relevant experience and work on similar projects completed within the last ten (10) years. Also, provide resumes highlighting experience of key principals and staff that will be working on the proposed Project.
    - Architect and Engineer, other members of the Design Team, if applicable (e.g. artist, landscape architect, urban designer, etc.)
    - Construction Manager
    - Real Estate Attorney and Land-Use Attorney
    - Environmental Planner and Environmental Engineer, if applicable
    - Community Service or Program Provider, if applicable
    - Marketing and Leasing/Sales Agent, if known

- ☐ *Capacity.* Affirmative Capacity Statement regarding the Development Team's ability to develop, finance, construct, manage, and complete the Project within the proposed Schedule, including, but not limited to, the Developer Obligations, as well as the Terms, Conditions, and Limitations and Conflicts of Interest, included in this Request.

TAB F – Development Schedule / Phasing Plan

- ☐ Development schedule and phasing plan listing and scheduling industry standard activities, including, at a minimum:
    a. Community planning
    b. Concept, Schematic, Design Development, Bidding and Construction documents
    c. Governmental planning approvals and construction/building permits
    d. Site due diligence and preparation
    e. Bidding
    f. Financing and financial closing/Site disposition
    g. Construction commencement, completion, and close-out
    h. Marketing and lease-up
    i. Occupancy
    j. Development Phasing Plan, if applicable
- ☐ Schedules are to assume the following key benchmarks:
    - Predevelopment commencement within 30 days of the date of HPD issuance of the Negotiation Letter.
    - Schematic Design phase and HPD approval of plans and drawings within 6 months of the Negotiation Letter.
    - Construction commencement within 18-36 months from the date of the Negotiation Letter.

Financing and Affordability

TAB G – Financing Submission

- ☐ *Form G: Financing Scenario.* (Submit in both hard copy and on flash drive in Excel format). If elements of the Project are separately financed, the Submission must provide separate financial scenarios for each portion. If Project elements are financially inter-related, a comprehensive Financing Scenario showing the financing for the whole Project, with each element delineated, may also be submitted.

- ☐ *Rents and AMIs.* All Submissions must reflect the rent price affordability calculations (based on AMIs), and utility allowances described in the Form. In addition to the affordability requirements described throughout this Submission, any subsidy programs that are utilized will determine any additional affordability requirements, as applicable. For units supported by Project-Based Section 8 Vouchers (PBV), assume rental assistance at 100% of the 2019 FMR.

- ☐ *Superintendent's Unit.* Specific information about the superintendent's unit(s) shall be included, as applicable. If the superintendent unit is not located onsite, a letter explaining alternative provisions for onsite janitorial services that satisfy the Housing Maintenance Code must be included.

- ☐ *Project Budgets.* Provide Hard Cost calculations (including, but not limited to estimated construction costs, overhead, profit, insurance, contingency) with cost/sf estimates for both gross and net square footage. Please identify the entity that provided hard cost estimations and provide qualifications of this entity, if not already included in other parts of this proposal. Provide Soft Cost calculations, including assumptions for all fees for professional services, financing, and other industry standard and HPD allowable costs. Provide a percentage of Total Development Cost (TDC) for each line item.

- ☐ *Tax Exemption Programs.* Submissions must indicate which tax exemption program(s) the Project plans to utilize, if any.

- ☐ *Financing Narrative*. The Financial Scenario must clearly explain the financing structure of the Project, and explicitly identify proposed subsidy/financing programs. If the financing scenario proposes competitive financing sources, the financing narrative should explain the feasibility of obtaining the proposed sources and/or describe the respondents' history of successfully applying for the proposed sources.

- ☐ *Financing Senior, Homeless, and/or Supportive Housing.* Submissions that include homeless, supportive, and/or senior housing components may include competitive financing sources in their Primary Financing Scenarios.

- ☐ *Regulatory Term*. Units must remain in the rent stabilization system for the duration of the Project, but in no case less than thirty (30) years. The Developer may propose a strategy to extend the affordability period for an additional number of years in this Tab. Submissions must explain any future financial and other resources needed from the City to extend affordability beyond the regulatory period and indicate how the Submission budgets for future capital needs.

- ☐ *Social Services for Tenants.* The SARA program requires on-site tenant services. Service funding options include the Senior Affordable Rental Apartment Tenant Services RFP and the Provision of Congregate Supportive Housing RFP (also known as NYC 15/15) administered by the NYC Human Resources Administration, and other service funding opportunities for which the project would be eligible. Respondents should identify their proposed service funding source, service provider, and describe the services that will be offered to tenants. A social services budget should not be included in submissions.

TAB H –Financing Letters of Interest and Historical Financing Letters of Interest/Award Letters

☐ **Financing Letters of Interest**

- **Private Financing**
  If private financing is proposed, a letter, or letters of interest, from a private lender or lenders must be included. Letters must be dated no earlier than two (2) months from the date of submission of the Developer's proposal. Applicants may use different private lenders for construction and permanent financing. The letters must be provided on the lender's letterhead, signed by a representative of the lender, and must state the amount and terms of the financing. The letter(s) must indicate a willingness to provide construction and permanent financing in amounts and with terms consistent with the proposal, and must include the following:
  - *Construction Loan*
    - The amount of financing that the lender would consider based on the lender's preliminary determination of feasibility, based on expected development costs, operating income/expenses, and associated residential rent levels; and
    - The interest rate (fixed or variable), the equity requirement, applicable fees, and other terms under which the lender would provide construction financing.
  - *Permanent Loan*
    - The amount of financing that the lender would consider based on the lender's preliminary determination of feasibility, based on expected development costs, operating income/expenses, and associated residential rent levels; and
    - The interest rate (fixed or variable), the equity requirement, applicable fees, and other terms under which the lender would provide permanent financing; and
    - The maximum loan to value ratio and other underwriting criteria, including treatment of rental income, minimum maintenance and operating expenses, and debt service coverage requirements.
  - *LIHTC Syndication*
    - If LIHTC financing is proposed, a syndication letter of interest is required. If LIHTC financing is proposed, the experience of the development team with tax credits must be described in the financing narrative.
- **Public Financing**
  - If HDC bond financing is proposed, a letter of interest from HDC is NOT required.

☐ **Historical Financing Letters of Interest/Award Letters** (for similar projects financed within the past 7 years, if applicable)

- **Competitive Sources**
  - Any Proposal that includes funding or financing that is awarded on a separate competitive basis must submit historical letters of interest or award letters for similar projects financed within the past 7 years, if applicable.

TAB I – Assets Statements

☐ **Assets Statement and References**

- Each Principal of the Respondent must submit audited or reviewed financial statements detailing the Principal's financial status in the two most recent years preceding the Submission Due Date for this Request. Publically-owned companies must submit the latest annual report and Form 10K, as well as any Form 10Q submitted after such Form 10K. As an alternative, the Assets Statement in Form K may be used. Provide sufficient information necessary to evaluate the Respondent's current financial commitments and track record to meet the financial obligations of the proposed Project.

- Provide references only of banks, investors, or other lenders that have financed previous and similar development projects.

Development Program and Community Development

TAB J – Development Program

- ☐ *Development Program.* Narrative describing a comprehensive perspective of the various components of the development program, including residential, commercial/ community facility, open space, and other land uses for the Site.

TAB K– Community and Economic Development

- ☐ Narrative describing a comprehensive approach to the various components of the community development program, including;
  - Community Engagement Plan that provides meaningful opportunities for community outreach, input, feedback, or participation in certain elements (design and programming) of the Project after Developer selection.
  - Hiring and Procurement Plan for achieving (or summary of having achieved) compliance with the following required City and HPD programs:
    - HireNYC
    - M/WBE Build-Up Program, a component of HPD's Building Opportunity Initiative
  - Public Approvals Outreach Plan providing a strategy for complying with the ULURP certification and public approvals process.

Design and Performance

TAB L – Design Narrative

- ☐ Design narrative that provides a clear and comprehensive description of the preliminary design and succinctly articulates the design approach to achieving the Project vision and goals. Narrative must cite all elements submitted in Tab L: Architectural and Urban Design Plans, as described below:

  - **Area Plan and Photos.** How the design concept was informed by neighborhood physical, cultural, historical and/or socio-economic characteristics, as well as the Site conditions.
  - **Zoning Analysis and Building Code.** How the proposed Project complies with, or requires a variance from, applicable zoning and other legal requirements, as well as any known environmental concerns and how the Respondent intends to address them.
  - **Site Capacity and Program Evaluation.** How the planning and design approach address the existing buildings and any significant Site features, and the capacity (opportunities and challenges) of the Site to incorporate the various components of the development program.
  - **Site Plan and Urban Design.** How the Site plan and urban design approach creates safe and active urban residential environments, connects the Site to the surrounding neighborhood, enhances the public and pedestrian realm, and fosters sustainable development.
  - **Building Design.** Highlight major and/or unique design approaches to the building envelope and façade, floor plans and unit layouts, building systems, construction type, and sustainable development.
  - **Design and Construction.** Identify proposed construction type and any cost containment concepts to achieve quality design within proposed budget and schedule parameters, and consistent with the development program.
  - **Design Excellence.** Narrative describes other design features proposed for the Project, such as Active Design, Universal Design, and/or arts to be incorporated Project.

TAB M – Architectural and Urban Design Plans

Submission completeness requirements:

- Plans and drawings are to be at a concept design level typically included as part of the preliminary Schematic Design phase for architectural services.
- Preliminary plans and drawings must provide a clear understanding and comprehensive illustration of the design approach.
- All plans must be prepared and signed by a Registered Architect or Professional Engineer.
- All plans must be dimensioned and with a north arrow.

- Elevation Drawings, Section Drawings, and Floor Plans must be dimensioned at the same scale.
- All plans and drawings must include the name of the Project, Respondent, Architect and/or Engineer, and date.
- All materials must be on paper size of 11" by 17", or smaller, and must be easily reproducible.

Area Plan and Photos

☐ Photos: Images of the Site and the Site's relation to surrounding buildings, streets, sidewalks, and open spaces, at least 3" x 5" in size. Photos must be keyed on the area plan outlined below. The photos must be clear enough to be reproducible. Submissions must include photos of other neighborhood and community characteristics and conditions that informed the designs.

☐ Neighborhood Area Plan: A neighborhood context plan(s) indicating circulation patterns, significant land uses, transportation networks, landmarks, and other neighborhood infrastructure and community amenities.

Zoning Analysis and Building Code

☐ Zoning Analysis: Zoning map for the Site, and a detailed zoning computation with an analysis to demonstrate compliance with the assumed zoning. The analysis must cite pertinent sections of the zoning resolution. The analysis must include, at a minimum, the assumed zoning and uses; and the proposed and allowable/required (1) unit density; (2) FAR and ZFA (total and by use); (3) lot coverage; (4) height and setbacks; (5) streetwall requirements; (6) yard requirements; and (7)vehicle and bicycle parking, etc.

☐ Site Zoning Study: Site plan detailing adjacent street widths, setbacks, encroachments, easements, lot size, tax lot and zoning lot boundaries, and other relevant zoning and Site conditions and features.

☐ Square Footage Analysis: chart(s) with detailed breakdown of residential, community facility, parking, open space, and other components of the development program. The chart must include gross square footage, deductions and zoning square footage (floor area) by building and floor.

☐ Building Zoning Study: Massing diagram detailing building(s) uses, size, height, and other relevant zoning and Site conditions and features.

Site Plan and Urban Design

☐ Site Plan: Site plan indicating all components of the development program.

☐ Site Connectivity Plan: Site plan illustrating the connection of the Site to the broader neighborhood infrastructure and community amenities, within one block of the Site, at a minimum.

☐ Circulation and Open Space Plan: Site plan with walkways, sidewalks, garage and parking areas, curb cuts, building entrance/egress points, streetscape improvements, landscapes, lighting, easements, and encroachments.

Building Design

☐ Floor Plans: Ground level concept plans clearly indicating distribution of the development program and circulation patterns.

☐ Typical Dwelling Unit Plans: Typical unit floor plans that provide residential unit uses and separation of spaces, circulation and entrance/exit, key dimensions and square footage, access to light and air, and unique features and amenities.

☐ Elevation Drawings: Elevations clearly indicating proposed fenestration and materials, ceiling heights, floor elevations, and total building height.

☐ Site Section Drawings: Site section indicating proposed building and other land uses in contextual relation to other Site improvements, including adjacent buildings and Sites.

- ☐ Building Section Drawings: Building section indicating building to grade relationship and floor-to-floor and floor-to-ceiling height; and, key wall, floor, and roof section indicating envelope materials, fenestration, and approach to sustainable development.

- ☐ Illustrative Drawings: Conceptual diagram and/or sketch illustrating the intent and approach to the design and development of the Site. Simple visualization to communicate design aesthetic, scale and relationship of the Project components, and a general sense of space from the pedestrian perspective/ experience. (Physical models will not be accepted. Photo-realistic renderings or other expensive drawings are not required or encouraged.)

VIII. DEVELOPER OBLIGATIONS

A. Development Team and Project Management

The Developer will be responsible for assembling a Development Team with the necessary expertise, experience, and capacity to develop and manage the proposed Project, such as expertise in affordable housing development and finance, marketing and property management (residential and commercial, if applicable), design and construction, social service provision, and community development.

The Developer is responsible for a professional and disciplined project management approach to the public/private partnership in connection with this Submission with the objective of ensuring transparent information, project governance, smooth negotiations and communications, as well as risk management and quality control.

The Developer is responsible for arranging timely commencement and completion of the Project, and will be held accountable for the schedules outlined in the Submission and agreed upon with HPD. The Developer will be required to submit ongoing status reports regarding Project development, financing, budget, schedule, marketing, leasing, and management.

The Development Team is responsible for activities typically associated with development, including, but not limited to, the design, finance, construction, marketing and leasing (and/or selling), and management of the completed residential units and commercial spaces, if applicable.

B. Community Outreach

The Developer will lead all community outreach activities and participate in required public forums, hearings, and briefings with the Community Board, elected officials, City agencies, and other organizations, as determined necessary by HPD, and will provide the necessary documentation and presentations for said meetings and forums.

C. Design and Construction

The Developer is responsible for obtaining all necessary governmental permits for the construction of the Project. The Developer must submit to HPD a full set of Schematic Design documents that include any modifications to the original concept/preliminary drawings and plans included in this Submission, as agreed upon by HPD and the selected Respondent, for HPD review and approval, within six (6) months of selection. Prior to disposition, the Developer must submit a complete set of Design Development documents and specifications to HPD for review and approval. The Developer is responsible for submitting final Construction Documents to HPD, which must conform to previous review comments and approvals made by HPD. The Developer will be expected to start construction on the date specified in its Development Schedule, which must be within 18-36 months of HPD's issuance of a Negotiation Letter to the Developer.

At a minimum, the Developer is responsible for meeting the most current applicable design and construction regulations and guidelines listed below:

- HPD Design Guidelines for Multifamily New Construction and Senior Housing
- HPD Design Guidelines for Supportive Housing, if applicable
- HPD Building and Site Performance Guidelines: Enterprise Green Communities Criteria Certification Overlay for NYC HPD Projects,

Submissions must comply with all current regulations, codes, and ordinances, including, but not limited to:

- Zoning Resolution
  - MIH, if applicable
  - Zoning for Quality and Affordability, if applicable
- New York City Construction Codes

- Multiple Dwelling Law
- Fair Housing Act
- Section 504 of the Rehabilitation Act of 1973 and Accessibility Requirements (applies even if Project does not receive federal funds, and includes architectural, as well as marketing standards)
- Americans with Disabilities Act (as applicable)

D. Environmental Review

The Developer will be responsible for preparing and submitting an Environmental Assessment Statement (EAS) in accordance with the guidelines contained in the latest edition of City Environmental Quality Review (CEQR) Technical Manual, including an EAS form, graphics and technical assessments and appendices, as necessary. It is anticipated that HPD will serve as the lead agency for the CEQR review and will oversee the preparation of all CEQR documentation; however, the Developer will be responsible for retaining a reputable environmental consultant, preparing and submitting all CEQR documents, and funding the cost of the studies and analysis required for completion of CEQR. The CEQR assessment will consider the discretionary approvals described below. The Developer will be solely responsible for any mitigation measures identified as a result of the CEQR review.

In addition, the Developer will be responsible for preparing an EIS, if necessary, and associated environmental studies which could include, but are not limited to Phase I and Phase II Environmental Site Assessment (ESA), Phase IA archaeological assessments and noise/acoustical studies. The Developer will be responsible for implementing any remedial measures identified in connection with the redevelopment of the Site as determined by HPD. HPD does not make any representation or warranty whatsoever regarding the condition of the property or the suitability of the property for the uses contemplated by this Request. The Developer will be solely responsible for providing engineering and institutional controls to allow for the reuse of the Site.

The Developer will be responsible for procuring a Phase I ESA for the property to be reviewed by HPD's Environmental Planning Unit. If applicable, the Developer will be responsible for preparing and implementing a Phase II Subsurface Investigation work plan and, in the event contamination is present, a remediation plan. The Phase II work plan, Phase II results, and any required remediation plan would be subject to review and approval by HPD's Environmental Planning Unit as well as either DEP or OER. No such investigation or remediation plan development may proceed without the oversight of these City agencies.

E. Public Land Use, Zoning and Approvals

HPD will be the applicant for the ULURP application, with assistance from the Developer in preparing the supporting documentation for the application, if needed. The Project will also require City Council and Mayoral approvals. Anticipated actions requiring approval under ULURP or UDAAP for development of the Site include Mayoral approval of the disposition. The Developer may be required to alter the designs or program before and during the ULURP process to comply with any request for modifications.

F. Financing

Real Property Taxes and Exemptions
The Developer is responsible for applying to, and meeting the requirements of, specific tax benefit program(s). HPD makes no representations or warranties as to the continued availability of these benefits or as to the Project's eligibility to receive these benefits. The Site(s) will be subject to New York City real property taxes and charges. However, the tax exemptions described below may be available for eligible projects. Specific benefits may vary depending on characteristics of the Project. For details of each program, the Developer is responsible for researching the relevant statute and rules.

- The Affordable New York Housing Program (RPTL Section 421-a(16)) that took effect on April 10, 2017, provides a partial tax exemption for new multiple dwellings from real property taxes on the increase in assessed valuation resulting from the improvement to the property. The full amount of

real property taxes on the assessed valuation of the property in the tax year preceding the year in which construction commenced must be paid each year. In addition, real property taxes must also be paid for any commercial, community facility, or accessory uses that in total exceed 12% of the aggregate floor area of the project. Eligible rental projects of 6 or more units, would receive a retroactive 100% exemption for a construction period of up to three years, and depending on the location and number of units, either a 35-year post-construction partial exemption (25 years at 100% exemption and an exemption equal to the percentage of affordable units during the last 10 years), or a 35-year post-construction full exemption (35 years of 100% exemption). Projects receiving the 100% exemption for the full 35 years are restricted for 40 years rather than 35 years.

- The Article XI tax exemption provides a complete or partial tax exemption from New York City real property taxes for up to 40 years for the new construction or rehabilitation of affordable housing carried out by a Housing Development Fund Company (HDFC). An HDFC is a corporation formed under Article XI of the Private Housing Finance Law to develop and operate low-income housing. The formation of each HDFC which is a sponsor of an HPD project is individually approved by HPD and this tax exemption is subject to City Council approval.

- The 420-c tax exemption provides an exemption from New York City real property taxes for up to sixty (60) years for housing financed or previously financed in part with Federal Low Income Housing Tax Credits. In order to be eligible for this tax exemption, at least 70% of the units must be subject to the income and occupancy requirements of Internal Revenue Code Section 42. Projects must be owned or leased for at least thirty (30) years by a corporation, partnership, or limited liability company, of which at least fifty percent (50%) of the controlling interest is held by a charitable organization with 501(c)(3) or (4) tax exempt status whose purposes include the provision of low income housing, or a wholly-owned and wholly-controlled subsidiary of such a charitable organization. HPD must approve the regulatory agreement that imposes tax credit restrictions on the project's dwelling units and may also require a payment in lieu of taxes (PILOT).

- The Urban Development Action Area Project ("UDAAP") tax exemption is subject to approval by the City Council. The City Council may grant an exemption from the New York City real property taxes on the buildings/improvements for up to twenty (20) years. If the Council grants the full 20-year exemption, the improvements on the Site(s) would be fully exempt from the New York City real property taxes on the buildings/improvements for the first ten (10) years with a gradual phase-in of full taxes over the remaining ten (10) years (10% per year). The full amount of the New York City real property taxes on the land must be paid each year. Other governmental approvals are required before the City is able to use the UDAAP.

Transfer Taxes and Disposition Price
The Developer is responsible for paying all transfer taxes associated with the conveyance of the Site(s) to the Developer, including any transfer taxes associated with the conveyance of the condominium units and all transfer and recording taxes associated with financing of the construction and the Project, generally.

The Developer will pay, upon conveyance, a nominal disposition price, anticipated to be $1.00 per lot at HPD's sole discretion, and will deliver an enforcement note and mortgage for the difference between the purchase price and the appraised value of the Site, which may accrue interest at the AFR and may be payable at maturity.

HPD – HDC Term Sheets
Developer Submissions must comply with all terms of the HPD SARA Term Sheet. If Financial Scenarios include tax exempt bonds and 4% LIHTC financing, up to $75,000 per dwelling unit in subsidy will be available from the HPD SARA term sheet. If Financial Scenarios include 9% tax credit financing, up to $125,000 per dwelling unit in subsidy will be available from the HPD SARA term sheet.

Developer Submissions that assume HDC bond financing (and subsidy financing, if applicable) must comply with all terms of the HDC Extremely Low and Low-income Affordability Program (ELLA) Term Sheet.

Project-Based Rental Assistance
Development teams that propose the use of project-based rental assistance in accordance with HPD-HDC term sheets will be expected to apply to HPD's Project-Based Voucher (PBV) Request for Proposals or other project-based rental assistance competitions. HPD will accept applications to its PBV RFP on a rolling basis and awards will be made four times per year at intervals that will be announced at a later date.

Subordinated Debt
Developer Submissions calculate subordinated debt at the amount equal to the sum of:

1. The difference between the cash portion of the purchase price paid at closing and the appraised value of the Site, based on an independent appraisal acceptable to HPD; plus

2. The aggregate amount of any City, State, or Federal construction subsidies for the construction of the units less the amount required to be repaid from proceeds from the sale of the units, if applicable; plus

3. Any additional value as reflected by the difference between the homeownership sales prices and the as-built market value of the Site and improvements, if applicable.

Resale, Refinancing, and Recapture Restrictions

- The HPD enforcement mortgage is subject to repayment from refinancing and resale profits, and may be non-evaporating.

Incentive Programs
The Developer is responsible for pursuing and securing other subsidies related to the Development Program that may be available:

Brownfield Redevelopment

- New York City Office of Environmental Remediation provides subsidy and technical assistance for City-supported affordable and supportive housing developments.

Commercial and Retail Incentives

- New York City Economic Development Corporation (NYCEDC)'s guide to financing and incentives

- Food Retail Expansion to Support Health (FRESH) Program: promotes the establishment and retention of neighborhood grocery stores in underserved communities by providing zoning and financial incentives to eligible grocery store operators and developers.

- NYCEDC Capital Access Loan Guaranty Program: Provides up to a 40 percent guarantee on loans for qualified NYC micro (fewer than 20 employees) and small (21-100) businesses experiencing difficulty in accessing loans.

G. Disposition and Disposition Price

The Developer will be responsible for executing and complying with all Site Disposition requirements. Disposition of the Site(s) to the Developer will be subject to the following:

- Receipt of all public approvals required for disposition of the Site(s) and development of the proposed Project(s) on such Site(s), including without limitation, approval by the Mayor.

- Execution and delivery of the documents necessary to complete the disposition process within a time period specified by HPD. These documents include, but are not limited to, an LDA, as required.

- The Site(s) will be conveyed in accordance with the terms of the LDA to be entered into between the Developer and HPD and will be conveyed in "as-is" condition, including without limitation, all environmental conditions and hazards. The LDA will contain covenants running with the land that

require the Developer to develop the Site(s) in accordance with plans and specifications determined and approved by HPD.

- The City will convey the Sites subject to a remainder interest, so that title will revert to the City upon expiration of the regulatory period unless the parties mutually agree to an additional term of affordability.

- The simultaneous closing of a bona fide construction loan required to finance the full development of the Site(s).

H. Construction

The Developer is responsible for overseeing the design, bidding, and construction process generally described below:

Bidding and Contracting. The Developer is responsible for managing all phases of the design process to ensure the implementation of integrated design strategies to achieve high performing buildings and sites. The Developer is responsible for ensuring competitive construction pricing and delivery to make certain that the building is deliverable according to the Project budget and schedule, which must be consistent with HPD-HDC Term Sheets.

The Developer is responsible for procuring and managing the construction of the Project, and ensuring smooth negotiations and contracting with any sub-contractors for the construction and operations of the completed Project.

Completion and Close-out. The Developer is responsible for implementing all professional industry standard practices in construction monitoring, construction completion, compiling all warranties and guarantees, any applicable commissioning, and transferring the completed building to property management and maintenance personnel, and coordination with HPD marketing departments as units are completed and ready for leasing or sales.

I. Marketing and Leasing

The Developer is solely responsible for marketing and leasing of the residential units. In carrying out these functions, the Developer must comply with HPD and HDC's marketing requirements, which are designed to ensure that the availability of the units is disseminated as widely and fairly as possible. The Developer must ensure compliance with tenant/household preferences included in HPD and HDC's marketing requirements. The rent of the units projected in the Submissions are to be determined by the Developer in accordance with HPD, as stated in applicable term sheets or otherwise. The marketing of the units will be monitored by HPD staff to ensure compliance with these requirements. The HPD-HDC Marketing Handbook will be incorporated by reference into the regulatory agreement that the Developer will execute.

The Developer is responsible for ensuring that all respondents, regardless of preference, must meet the income, employment, and other eligibility criteria set for each property for which it is applying.

J. Operating Rents – Rent Stabilization

The Developer is responsible for ensuring that initial rents will be established in accordance with the regulatory agreement consistent with any income requirements outlined in this Request and/or the subsequent Submission or other financing conditions and terms. Prior to initial occupancy, all residential apartment units must be registered with HCR under rent stabilization at rents specified in the regulatory agreement. Residential apartments must remain in the system for perpetuity.

K. Property Management and Maintenance

The Developer is responsible for providing professional property management services, and having all standard asset management systems in-place to qualify income levels pursuant to funding requirements, as well as to submit property management data and operating budgets to HPD.

The Developer is responsible for professional maintenance services, as well as supporting or facilitating resident programming and community rules that promote health, safety, and quality of life at the Project.

L. HireNYC

The Developer, General Contractor, and certain Subcontractors will be required to participate in *HireNYC*, a workforce development program which connects the City's real estate development projects to the City's workforce development services. Development partners will be required to enroll with Workforce1 through an on-line system hosted by the Department of Small Business Services, to share job openings in entry-and mid-level construction positions with Workforce 1, and to interview the qualified candidates that Workforce 1 refers for those openings. Respondents will be required to regularly report on their outreach activities per HireNYC Program requirements. For more information about *HireNYC*, see HPD and SBS websites.

M. Minority and Women-Owned Business Enterprise (M/WBE) Build-Up Program

The Developer is responsible for complying with the M/WBE Build Up Program, which is a component of HPD's Building Opportunity Initiative. Currently, the program requires developers/borrowers to spend at least a quarter of HPD-supported costs on certified M/WBEs over the course of design and construction of an HPD-subsidized project. A minimum of 25% will be required for each project subject to the program. Developers may adopt a goal higher than the minimum.

N. Fair Housing Requirements

The Developer must comply with all applicable Federal, State, and local laws, orders, and regulations prohibiting housing discrimination.

O. Warranty Coverage

If the residential apartments in the Project are sold by Developer as cooperative apartments or individual residential condominium units, Developer will be responsible for ensuring that these residential apartments are sold with a warranty that is the same as the housing merchant implied warranty described in Section 777(a) of the New York State General Business Law. The warranty must be applied to all residential apartments, regardless of the number of stories of the building in which they are located, and may not be limited, modified, or excluded by the methods provided for in Section 777(b).

P. Section 3 Clause

The Developer is responsible for complying with Section 3 of the Housing and Urban Development Act of 1968 (12 U.S.C. 1701u) and the implementing regulations at 24 CFR part 135, if applicable, which includes, but not limited to, providing: (i) to the greatest extent feasible, opportunities for training and employment arising in connection with the planning and carrying out of the project must be given to "Section 3 Residents" as such term is defined in 24 CFR 135.5; and (ii) to the greatest extent feasible, contracts for work to be performed in connection with any such project must be awarded to "Section 3 Business Concerns" as such term is defined in 24 CFR part 135.5.

Q. Davis-Bacon

The Developer must comply with Davis-Bacon and the Contract Work Hours and Safety Standards Acts, if applicable, which, currently includes Projects that contain twelve (12) or more units assisted with Federal HOME funds or Projects that contain nine (9) or more units funded with Project Based Vouchers.

R. Equal Opportunity

The Developer will be required, along with partners, or authorized representatives of the Developer, to attend a class administered by HPD outlining the requirements of Executive Order No. 50, and to submit Equal Opportunity forms provided by HPD verifying their compliance with the provisions of the Executive Order.

IX. CONDITIONS, TERMS, AND LIMITATIONS

This Request is subject to the specific conditions, terms, and limitations stated below:

All determinations of HPD regarding this Request are at the sole discretion of HPD.

The Site(s) is to be disposed of in its "as is" condition. The City, its officials, agents and employees make no representation whatsoever as to the physical condition of the Site(s) or its suitability for any specific use.

The Site(s) shall be subject to New York City real property taxes and charges. Tax benefits may be available under 421-a, Article XI, 420-c, UDAAP, or other tax exemption programs.

The proposed Project must conform to, and be subject to, the provisions of the Zoning Resolution, Building Code, and all other applicable laws, regulations, and ordinances of all Federal, State, and City authorities having jurisdiction, as the same may be amended from time to time.

Valid permits and approvals, as required by City, State, and Federal agencies, must be obtained by the Developer prior to commencing work.

The commencement of negotiations with a Developer will depend on satisfaction of the additional documentation and review requirements described in this Request, and will be subject to the subsequent approval of the Mayor.

The City will convey the Site(s) pursuant and subject to the provisions of the LDA, including the remainder interest described in this Request. HPD will recommend to the Mayor the disposition price as stated. Where required, all documentation, including but not limited to the deed and LDA, must be in form and substance satisfactory to the Mayor and Corporation Counsel. The conveyance will be subject to satisfaction of the applicable provisions of the City Charter and Article 16 of the General Municipal Law.

No transaction will be consummated if any Principal of any selected Developer is in arrears, or in default upon any debt, lease, contract, or obligation to the City, including without limitation, real estate taxes and any other municipal liens or charges. The City may refuse to review any Submission by any such Respondent.

The Developer and any contractor it retains must pass a City background check before closing.

No commission for brokerage or any other fee or compensation will be due or payable by the City, and the Submission to this Request will constitute the Respondent's undertaking to indemnify and hold the City harmless from and against any such claim for any such fee or compensation based upon, arising out of, or in connection with any action taken by the Respondent, the selection of the Respondent's submission and invitation to the Respondent to respond to this Request, the conditional designation of a Developer pursuant to this Request, or the sale of the Site(s).

The City is not obligated to pay, nor shall in fact pay, any costs or losses incurred by any Respondent at any time, including the cost of responding to the Request.

This Request and subsequent Submission do not represent any obligation or agreement whatsoever on the part of the City. Any obligation or agreement on the part of the City may only be incurred after the City executes a written agreement approved as to form by the Corporation Counsel. The City is under no legal obligation to convey the Site(s) through a competitive process. The City may use the Submissions pursuant to this Request as a basis for negotiation with Respondents as the City deems appropriate. HPD may reject at any time any or all Submissions, amend or withdraw this Request in whole or in part, negotiate with one or more Respondents, and/or negotiate and dispose of the Site(s) on terms other than those set forth herein (including to parties other than those responding to this Request). HPD may also, at any time, waive compliance with or change any of the terms and conditions of this Request, entertain modifications or additions to selected Submissions, or withdraw the Site(s) or portions of the Site(s) from or add individual parcels to this Request.

Selection of a Respondent's Submission will not create any rights on the Respondent's part, including, without limitation, rights of enforcement, equity or reimbursement, until after the approvals of the City Council, Mayor, and Corporation Counsel, and until the deed, LDA, and all related documents are fully executed and approved. After execution, the terms of the deed and LDA shall govern the relationship between the City and the Developer. In the event of any variance between the terms of this Request and the deed or the LDA, the terms of the deed and/or the LDA will govern.

All determinations as to the completeness or compliance of any Submissions, or as to the eligibility or qualification of any Respondent, will be within the sole discretion of the City.

This Request and any agreement resulting there from are subject to all applicable laws, rules, and regulations promulgated by any Federal, State, or municipal authority having jurisdiction over the subject matter thereof, as the same may be amended from time to time.

X. CONFLICTS OF INTEREST

Current and former employees of the City of New York may respond to this Request only in accordance with Chapter 68 of the New York City Charter governing ethics and conflicts of interest affecting City personnel. Section 2604(c)(7) of the City Charter contains specific prohibitions that exclude enumerated groups of employees from participating in the sales process. In addition, current HPD employees may not respond to this Request.

Persons in the employ of the City considering a Submission are advised that opinions regarding the propriety of their purchase of City-owned property may be requested from the New York City Conflicts of Interest Board. This body is empowered, under Section 2602 of the City Charter, to issue advisory opinions on conflict of interest questions and other matters of ethical considerations. It is not necessary, however, that such an opinion be obtained prior to responding to this Request.

Former employees of the City of New York are also advised that the City Charter imposes certain restrictions on post-employment and business relationships with the City. Such individuals are advised to consult the specific provisions on this issue contained in the City Charter.

XI. APPENDIX

A. Zoning, Site Plan, and Building Design Guidelines
B. Jerome Avenue Rezoning Points of Agreement
C. Submission Forms - Forms are available for download on the website in Word and Excel formats as part of this Submission. The lettering of Forms corresponds to the Submission Tabs. Please note that not all Tabs require a form.

Form A-1:	Completeness Checklist
Form A-2:	Respondent's Letter
Form D-1:	Development Team Information and Respondent Questionnaire
Form D-2:	Not-for-Profit Organization Form
Form E-1:	Residential Development Experience and Current Workload
Form E-2:	Residential Management Experience and Current Workload
Form E-3:	Management Questionnaire
Form E-4:	Commercial Management Experience
Form G:	Financing Scenario
Form I:	Site Development Program Summary

APPENDIX A:
Zoning, Site Plan, and Building Design Guidelines

APPENDIX A: Zoning, Site Plan, and Building Design Guidelines

General Design Guidelines

SITE PLAN and URBAN DESIGN

Respondents must develop a thoughtful site plan that connects the Site with the surrounding neighborhood. Designs will be evaluated on the approach to creating contextual architecture and urban designs that enhance existing neighborhood commercial corridors and/or residential areas, and create safe, high-quality, residential environments.

BUILDING DESIGN

Envelope/ Exterior:

- Architectural designs will be evaluated on façade, fenestration, setbacks, heights, massing, materials, projections and articulations (e.g. entrance and egress), scale and other architectural elements that build upon, mend, or strengthen existing neighborhood quality and character.
- Conceptual Building Elevations.
  - Building materials will be evaluated on the aesthetic quality, as well as durability.
  - Roof lines, floor lines, and top of parapets will be evaluated on their contextual relationship with adjacent buildings and surrounding neighborhood.
- New construction must be integrated with the neighborhood context. The design of the buildings must provide for variety and visual interest, and maintain a coherent quality for the multiple buildings on the block.
- Bulkheads must be located and designed to reduce their impact on the surrounding context.

Street/Ground Level Façades:

The lower portions of the façade must enhance the pedestrian experience. The first one to two floors, or "lower base," of the building must address the pedestrian scale by activating pedestrian uses.

- The base of the building must address the pedestrian scale by defining a clear street wall with active uses, multiple pedestrian entrances, transparency, and/or other material articulation and depth to activate the abutting sidewalks and enhance the pedestrian experience. Large areas of blank wall are to be avoided.

Plans/ Interior:

- Typical Unit Floor Plans
  - Efficiency and quality of typical unit floor plan.
  - Quality of resident experience – views, circulation, storage, efficiencies, convenience.
- Common Space
  - Location and quality of the proposed community facility and/or commercial space.
  - Connection to, as well as quality and environmental comfort of, shared amenities, including lobby, community space, mailroom, outdoor areas, etc.
  - Circulation effectiveness for controlled access (private and public), including security, visibility, etc.
  - Circulation quality of experience, and efficiency and accessibility of circulation patterns.
  - Quality of resident and visitor of experience – accessibility, clear egress/ingress and circulation.

Systems:

- Structural system. Structural systems are appropriate for Site and building design, durable, easy to maintain, and efficient.
- Mechanical, Electrical, and Plumbing (MEP) systems. MEP systems are durable, easy to maintain, and efficient.
- Sustainability. Building systems maximize the use of durable passive systems to achieve energy and water efficiencies that reduce consumption and operating costs.

Design and Construction

- Building design maximizes construction efficiencies (type, cost, time) while achieving high-quality design.

APPENDIX B:
Jerome Avenue Rezoning
Points of Agreement

OFFICE OF THE MAYOR
THE CITY OF NEW YORK

ALICIA K. GLEN
DEPUTY MAYOR FOR HOUSING AND
ECONOMIC DEVELOPMENT

March 6, 2018

The Honorable Fernando Cabrera
The Honorable Vanessa Gibson
New York City Council
City Hall
New York, NY 10007

Dear Council Member Cabrera and Council Member Gibson,

Your strong leadership and collaborative approach to this rezoning have been critical for the development and preservation of affordable housing in your neighborhood for years to come. Through the Jerome Avenue Neighborhood Planning process, we listened to hundreds of community residents at workshops and public meetings and took a broad, comprehensive look at current and future community needs to identify a wide range of strategies and investments, including key land use and zoning changes, which will support Jerome Avenue's growth and vitality.

Foremost among our priorities are housing quality and affordability. Today we will advance changes to the zoning of the Jerome Avenue corridor that will bring a substantial amount of affordable housing, much of which will remain permanently affordable through the mapping of Mandatory Inclusionary Housing.

Also included in these commitments are two state-of-the-art schools, catalytic investments in local parks, including $25.7 million towards the completion and expansion of Grant Avenue Park, and the renovation of Davidson Community Center. We will also invest in transportation, safety, and improvements to the public realm along the Jerome Avenue corridor.

In the coming months, we will convene task forces on Public Health, housing preservation, and workforce training, and we will partner with local community-based organizations, legal service providers, and you to advance a comprehensive anti-displacement plan. New programs will also provide assistance to businesses and their workers who may see change in the coming years.

Thank you for your partnership in working towards a more livable, equitable, and affordable New York City.

Sincerely,

Alicia Glen
Deputy Mayor, City of New York

JEROME AVENUE – POINTS OF AGREEMENT – 3/6/2018

Contents

JEROME AVENUE POINTS OF AGREEMENT 4

PRESERVE AFFORDABLE HOUSING 4

1. Keep homes affordable by continuing to offer loans and tax incentives to building owners 4
2. Host outreach and marketing events to continue promoting programs that help owners make repairs and preserve affordability 4
3. Pilot a Landlord Ambassadors Program to provide technical assistance to Jerome Avenue area property owners 5
4. Help homeowners access the resources they need to keep, maintain, and improve their homes 5
5. Implement the Neighborhood Pillars Program to help community organizations acquire rent stabilized buildings 5
6. Continue to improve housing quality through rigorous enforcement of the Housing Maintenance Code 6
7. Create a Southwest Bronx Housing Task Force to address unsafe building conditions 6
8. Provide robust free legal representation 6
9. Proactive outreach to Jerome Ave tenants to provide access to anti-displacement resources including legal services 6
10. Continue to work with the Tenant Harassment Prevention Task Force to investigate and take action against landlords who harass tenants 7
11. Host tenant resource fairs to educate tenants about their rights and resources to prevent displacement 7
12. Establish a "Certification of No Harassment" (CONH) Pilot Program 7
13. Pilot the new "Partners in Preservation" initiative to develop comprehensive anti-displacement strategies for buildings at risk 7
14. The Administration commits to the continuation of its work to identify Three Quarters Housing (TQHs) 9
15. Department of Homeless Services (DHS) will discontinue the use of all Cluster units in Council Districts 14 and 16 9
16. Dedicate rental assistance to help move 250 homeless families and individuals out of shelter and into affordable housing 9

DEVELOP NEW AFFORDABLE HOUSING 10

17. Incentivize the development of deeply affordable housing that exceeds minimum MIH requirements 10
18. Proactively engage property owners along Jerome Avenue about the City's resources to develop affordable housing 10

19. Advance affordable housing development on publicly-owned land 10

IMPROVE ACCESS TO AFFORDABLE HOUSING 12

20. Make it easier for residents to understand, prepare for, and complete the affordable housing application process 12

PROMOTE ECONOMIC OPPORTUNITY IN AFFORDABLE HOUSING DEVELOPMENT 12

21. Expand local hiring incentives in HPD-financed developments 12

22. Continue upholding responsible contracting and labor standards for affordable housing projects receiving City subsidy 12

EDUCATION 13

23. Build a new Community School District (CSD) 10 Elementary school at 2355 Morris Avenue 13

24. Build new Community School District 9 Elementary school 13

25. Complete PS 33 Annex 13

26. Commit to fund current Capital Plan Identified Need in Community School Districts 9 and 10 in the next Capital Plan 13

27. Construct a new "stand-alone gymnasium" at PS 246 Poe Center School 14

28. Explore Community School District 10 school rezoning 14

OPEN SPACE AND PARKS 14

29. Develop Corporal Fischer Park 14

30. Renovate and Expand Grant Avenue Park 14

31. Activate and Enhance Bridge Playground 14

32. Improve and Increase Access to Aqueduct Walk 15

33. Rename park at West 181 Street between Aqueduct Avenue and Dr. Martin Luther King Jr. Boulevard Commemorating Roscoe Brown and the Tuskegee Airmen 15

34. Reinvigorate Department of Parks and Recreation Greenthumb community gardens 16

WORKFORCE DEVELOPMENT AND SMALL BUSINESS 16

35. Create a new "Jerome Program Manager" position, which will oversee all business and workforce strategies related to the Jerome Avenue rezoning. 16

36. Design and Deliver Workforce Training for Auto Workers 16

37. Conduct Workforce Outreach and Recruitment Events 16

38. Launch Auto Business Compliance and Retention Initiative 17

39. Create Jerome Avenue Business Grant Program 17

40. Work with Jerome Avenue businesses to connect them to capital access services 17

41. Deploy the SBS Mobile Unit to the Jerome Corridor monthly 18

42. Connect Jerome corridor residents to construction training programs. 18
43. Partner with Council Members to launch the Jerome Avenue Local Hiring and Responsible Contracting Working Group 18

TRANSPORTATION AND PUBLIC SAFETY 19

44. Implement "Under the EL" Public Realm Improvements 19
45. Implement Commercial Corridor Improvements 20
46. Repave key streets along the corridor 20
47. Make Improvements to Cross Bronx intersection of Cross Bronx and Jerome Avenue 21
48. Reconstruct key step streets and commit to regular cleaning and trash removal 21
49. Continue increased sanitation services implemented as part of the Mayor's Rat Reduction Initiative 21
50. Support Metropolitan Transportation Authority (MTA) ADA accessibility project at the 170 Street Station on the 4 line 22
51. The City will advocate to MTA New York City Transit (NYCT) to provide additional peak hour bus service based on growth in the area 22
52. Install NYPD Argus security cameras within the Jerome Avenue rezoning area along Jerome Avenue corridor and intersecting commercial corridors 22
53. Address NYPD 44th Precinct parking issues through increased enforcement and changing nearby parking regulations 22
54. Address 46th Precinct Facility Challenges 22

COMMUNITY RESOURCES 23

55. Provide afterschool programming at new school to be located at 2355 Morris Avenue 23
56. Invest in improvements and expansion of Davidson Community Center 23

PUBLIC HEALTH 23

57. Convene Jerome Avenue Public Health Taskforce & Neighborhood Health Plan 23
58. Increase local access to healthy foods 24

TRACKING COMMITMENTS 24

59. Participate in regular meetings with Council Members to review progress on POA commitments 24

JEROME AVENUE POINTS OF AGREEMENT

INTRODUCTION

The City will advance the following comprehensive neighborhood investments in housing, transportation, public space, small business and workforce development, and community services in the Jerome Avenue rezoning area. The strategies below reflect over $189 million in new City funding for various projects and initiatives.

PRESERVE AFFORDABLE HOUSING

The New York City Department of Housing Preservation and Development (HPD) will work to preserve and protect 2,500 homes over the next two years. This goal will be achieved through a combination of HPD's preservation financing programs and Partners in Preservation (PIP) initiative.

Finance and Safeguard Affordability

1. **Keep homes affordable by continuing to offer loans and tax incentives to building owners**

   Since 2014, HPD has financed the preservation of over 5,500 affordable homes in CBs 4 and 5, representing more than 10% of all homes preserved across the city. HPD will continue monitoring homes in Community Districts (CDs) 4 and 5 with affordability restrictions in its portfolio, and use its various financing programs to preserve and invest in the neighborhood's existing affordable housing stock. HPD will strive to preserve the affordability of as many homes as possible in the Jerome area through 2026. Based on an assessment of its current pipeline, the agency will initiate preservation on at least 1,500 additional affordable homes over the next two years.

   Timeline: Ongoing; initiate preservation of at least 1,500 affordable homes between January 1, 2018, and December 31, 2019.

2. **Host outreach and marketing events to continue promoting programs that help owners make repairs and preserve affordability**

   HPD will continue its targeted outreach to property owners, including through events, mailings, e-mails, calls, and surveying of distressed properties. HPD currently hosts monthly Property Owners Clinics at its downtown location, where building owners can consult one-on-one with HPD preservation finance specialists and representatives from Department of Buildings (DOB), Department of Finance (DOF), and Department of Environmental Protection (DEP). HPD will target outreach for its monthly Property Owner Clinics – including via calls, mailings, and e-mails – to owners in the Jerome Avenue area. HPD will also conduct at least two property owner and homeowner resource events in the neighborhood. Outreach will be coordinated with local Council Members to determine communication and outreach strategies. HPD will e-mail to the Council Members regular reports of all property owner outreach conducted in the Jerome Avenue area and meet upon request.

Timeline: Ongoing and targeted community outreach; monthly Property Owner Clinics at 100 Gold Street. HPD will host at least two neighborhood resource fairs/clinics before the end of 2019.

3. Pilot a Landlord Ambassadors Program to provide technical assistance to Jerome Avenue area property owners

HPD is partnering with Enterprise Community Partners to pilot a Landlord Ambassadors Program to contract with community-based organizations who will conduct outreach and provide technical assistance to owners of multifamily buildings in targeted areas across the city. The Landlord Ambassador will work with local property owners to:

- Provide information about the benefits of using HPD financing programs;
- Navigate HPD program requirements, including regulatory requirements, and package application materials for HPD review and approval; and
- Access local resources and vendors needed in order to close, construct, and operate their properties, including contractors, property managers, attorneys, and other professionals.

Timeline: Fiscal Year (FY) 2017-2019.

4. Help homeowners access the resources they need to keep, maintain, and improve their homes

Funding for home repairs is often hard to find for low-income homeowners, especially families struggling to make mortgage payments. HPD will create HomeFix, a new program to help low- and moderate-income homeowners in small, one-to-four family properties fund home repairs. The new program will pair financial counseling with financial assistance, and leverage the services of community and non-profit partners.

Timeline: FY 2019 launch.

5. Implement the Neighborhood Pillars Program to help community organizations acquire rent stabilized buildings

HPD and New York Housing Development Corporation (HDC) are launching a new Neighborhood Pillars program to finance the acquisition and rehabilitation of existing rent-regulated buildings to protect current tenants and stabilize communities. The City will double the capacity of the Acquisition Loan Fund to $275 million to enable non-profits and mission-based organizations to acquire buildings that are rent-regulated, but not otherwise part of an existing affordable housing program.

Timeline: FY 2019 launch

Promote Safe and Healthy Housing

6. Continue to improve housing quality through rigorous enforcement of the Housing Maintenance Code

As part of the City's focus in the Jerome Avenue area, HPD has increased code inspections in Community Districts (CDs) 4 and 5 by 11%, and violations issued by 25% since 2014. HPD also spent $2.2 million in emergency repairs between Fiscal Years 2014-2017.

Timeline: Ongoing.

7. Create a Southwest Bronx Housing Task Force to address unsafe building conditions

HPD will convene and manage a Task Force led by the Bronx Borough President and local Council Members to identify buildings of concern and create action plans to address issues for each building. Building issues may include but are not limited to tax delinquencies, code violations, source of income discrimination, harassment, and expiring affordability restrictions. The Task Force will meet quarterly.

Timeline: Quarterly meetings for at least one year beginning Q2 2018.

Protect Tenants

8. Provide robust free legal representation

New York City is the first city in the United States to ensure that all tenants facing eviction in Housing Court or in NYCHA administrative proceedings will have access to legal assistance. Through a five-year implementation plan, free legal representation will be available to all tenants with household incomes at or below 200% of the federal poverty line, or roughly $50,000 for a four-person family. Brief legal counseling will be available to those earning more. New investments to support Universal Access will be implemented and phased in over the next five fiscal years and will reach $155 million by FY 2022. At full implementation, the City's tenant legal services programs are expected to provide access to legal services for 125,000 households, or 400,000 New Yorkers, and will level the playing field for tenants facing eviction and displacement.

Timeline: Ongoing through FY 2022.

9. Proactive outreach to Jerome Ave tenants to provide access to anti-displacement resources including legal services

The Tenant Support Unit (TSU), part of the Mayor's Public Engagement Unit (PEU), uses a data-driven approach to engage and provide assistance to New Yorkers who may be at risk of displacement or experiencing harassment. Outreach specialists conduct door-to-door outreach to inform tenants of their rights, identify any housing-related issues and connect them with a range of resources, such as emergency repairs and HRA's free legal services. Since July 2015, TSU specialists have knocked on over 32,600 doors and assisted over 6,000 tenants in the area. TSU will provide quarterly data (disaggregated by Council District) on all activities, including a list of targeted building, findings and issues encountered, and next steps to address issues.

Timeline: Ongoing through FY 2022.

10. Continue to work with the Tenant Harassment Prevention Task Force to investigate and take action against landlords who harass tenants

The Administration helped to create an interagency, multi-jurisdictional Tenant Harassment Prevention Task Force comprised of HPD, DOB, Department of Health and Mental Hygiene (DOHMH), the NYC Law Department, Department of Housing and Community Renewal (DHCR), and the New York State Office of the Attorney General (OAG) to investigate and bring enforcement actions – including criminal charges – against landlords who are found to be harassing tenants to force them to vacate rent-regulated homes. HPD will continue to work with the Tenant Harassment Prevention Task Force to take action against landlords in the Jerome Avenue area who are harassing tenants.

Timeline: Ongoing.

11. Host tenant resource fairs to educate tenants about their rights and resources to prevent displacement

HPD is committed to working with partner agencies, elected officials, and community groups to ensure tenants are aware of their rights and have access to important housing resources. HPD will host two tenant resource fairs per year in coordination with local Council Members. Additionally, as the Tenant Support Unit (TSU) conducts door-to-door outreach, they provide flyers informing tenants of their rights and offer assistance with accessing available resources to prevent displacement, including free legal services.

Timeline: Host two tenant resource fairs per year through the end of 2021.

12. Establish a "Certification of No Harassment" (CONH) Pilot Program

In response to feedback from the community and growing interest across the city, the Administration will enforce a pilot CONH program in designated neighborhoods, including CDs 4 and 5, to protect certain tenants from being harassed from their homes. This program will identify specific buildings which meet criteria indicating that tenants may be at risk for harassment. Owners of such buildings will be required to obtain a CONH before being granted building permits for specified covered work in the buildings. Community groups, under contract with HPD and identified through a Request for Proposals (RFP), will investigate buildings that apply for CONHs.

Timeline: Effective September 2018 - September 2021.

13. Pilot the new "Partners in Preservation" initiative to develop comprehensive anti-displacement strategies for buildings at risk

HPD will include the Jerome Avenue area in its new Partners in Preservation initiative and launch a Preservation Action Center that will serve as a hub for neighborhood-based anti-displacement initiatives. HPD will pair agency data with the on-the-ground experience and work of Council Members and other elected officials, community-based

organizations, legal service providers, and local stakeholders to advance a comprehensive anti-displacement plan for the Jerome Avenue area. Strategies are expected to combine new and existing tools to address harassment and disrepair; provide tenants with anti-eviction legal services; protect homeowners from foreclosure and predatory activities; and help building owners access HPD financial resources to improve their buildings and preserve affordability. As part of this initiative:

- **Risk analysis:** This initiative will seek to identify and prevent the deregulation of affordable homes in CDs 4 and 5. HPD will conduct an analysis of the existing housing stock, including an inventory of all regulated affordable housing to the extent possible using existing data sources and an assessment of the potential for displacement and/or deregulation.
- **Neighborhood preservation goals:** The risk analysis will inform a series of neighborhood-wide preservation goals, strategies, and actions to protect vulnerable households to protect vulnerable households and and ensure the Jerome Avenue area remains affordable into the future.
- **Building action plans:** HPD and partner organizations will develop and implement tailored action plans for approximately 40 rent-regulated buildings comprising 1,000 homes. Action plans will consist of building-specific strategies that seek to keep people in their homes, prevent deregulation, and preserve affordability. Strategies will include tenant organizing and education, legal counseling, litigation, proactive code enforcement, and owner outreach and technical assistance.
- **Coordination:** HPD and partner organizations will implement action plans in close coordination with tenant organizers, legal service providers, TSU, other government agencies, and the new Southwest Bronx Housing Task Force.
- **Tenant organizing:** This initiative will leverage funding for tenant organizers and legal service providers to partner with HPD to develop and implement building action plans. The Preservation Action Center will be housed within a community-based organization already on the ground in the neighborhood.
- **Meeting frequency:** HPD will convene regular project management/coordination meetings with partner organizations, and it will meet bi-monthly or upon request with local Council Members' offices.
- **Data sharing:** Affordable housing data, including preserved and newly constructed homes with affordability levels and homes at risk of deregulation, as well as updates on the implementation of building action plans, will be shared with the Council Members at bi-monthly meetings or upon request.

Timeline: Launch Q1 2019 for one year pilot period.

Expense Funding: $200,000 for tenant organizing

Three-Quarters Housing

14. The Administration commits to the continuation of its work to identify Three Quarters Housing (TQHs)

The Task Force will continue to work with local advocates and community members on identifying three quarter houses and addressing immediate health and safety issues. This includes refreshing data on three quarter houses and inspecting new potential addresses as they are brought to the task force, as well as promoting the Rapid Rehousing Hotline. Human Resources Administration (HRA) will follow up on referrals from local elected officials and tenant advocacy groups.

Timeline: Ongoing.

Cluster Closing

15. Department of Homeless Services (DHS) will discontinue the use of all Cluster units in Council Districts 14 and 16

DHS will discontinue the use of all cluster units in Council Districts 14 and 16 by 2021.

Council District 16: As of February 2018, Council District 16 housed 46 homeless facilities, including 22 shelters, 23 cluster sites, and 1 safe haven. The 23 cluster sites will be systematically closed by 2021. Subject to cooperation of private property owners, Department of Social Services (DSS) will move forward with the goal of transitioning clusters to Tier II transitional housing or permanent affordable housing.

Council District 14: As of February 2018, Council District 14 housed 38 homeless facilities, including 13 shelters and 25 cluster sites. The 25 cluster sites will be systematically closed by 2021. Subject to cooperation of private property owners, DSS will move forward with the goal of transitioning clusters to Tier II transitional housing or permanent affordable housing.

Buildings that contain cluster housing will be targeted for conversion to Tier II transitional housing or permanent affordable housing.

Timeline: DHS will end the use of all cluster units by 2021.

Dedicated Rental Assistance

16. Dedicate rental assistance to help move 250 homeless families and individuals out of shelter and into affordable housing

The Living in Communities (LINC), CITYFEPS Rent Supplement (CITYFEPS), and Special Exit and Prevention Supplement (SEPS) Rental Assistance programs were created to help homeless families and individuals move from temporary, emergency shelter back to the community as quickly as possible by paying a portion of their rent. HRA will dedicate LINC, CITYFEPS and SEPS or any successor program resources to help 250 homeless families and individuals from the rezoning area (zip codes 10451,10452,10453,10456,10457,10468) who are currently living in shelter move back into the neighborhood if they so choose.

Timeline: HRA expects to begin allocating vouchers within 120 days of the memorialization of the Jerome Avenue plan.

DEVELOP NEW AFFORDABLE HOUSING

The proposed rezoning could ultimately result in the development of approximately 4,000 homes, of which about a quarter would be permanently affordable through the implementation of the Mandatory Inclusionary Housing program (MIH). The City will encourage developers to utilize its financing programs to develop buildings that are 100% affordable.

17. Incentivize the development of deeply affordable housing that exceeds minimum MIH requirements

HPD recently updated its financing terms for its Extremely Low & Low-Income Affordability (ELLA) and Mix & Match programs to enable deeper affordability levels and to set aside homes for formerly homeless households. Additionally, any MIH project receiving City subsidy must now provide 15% more permanently affordable homes than required by the MIH program alone. Housing developments financed by HPD, greater than 45 homes, will include at least 10% of all homes for families earning less than 30% of the Area Median Income (AMI), and an additional 10% for families earning at or below 50% of AMI. If MIH Option 1 and the Deep Affordability Option are mapped along the Jerome Avenue corridor, any project that receives HPD financing under the ELLA or Mix & Match programs will be required to set aside between 35% and 40% of all homes as permanently affordable.

Timeline: Ongoing.

18. Proactively engage property owners along Jerome Avenue about the City's resources to develop affordable housing

HPD, in partnership with the Department of City Planning (DCP), the Department of Small Business Services (SBS), and local elected officials, will host an event this spring for property owners in the rezoning area to inform them of the City's resources for developing new mixed-use affordable housing and for small business support and development.

Timeline: Spring 2018.

19. Advance affordable housing development on publicly-owned land

The City will advance the development of publicly owned sites in CDs 4 and 5 for affordable housing.

- **Morrisania and Morris Heights NCP**
  Two small sites located at 130 West 182nd St and 1647 Popham Avenue, were included in the New Infill Homeownership Opportunities Program (NIHOP)/Neighborhood Construction Program (NCP) Request for Qualifications (RFQ) as part of the Morrisania and Morris Heights cluster. HPD selected a

development team led by Neighborhood Infill Partners in February 2018 to develop these two sites, along with seven other small and difficult to develop sites scattered across CDs 3 and 12. The two sites in CD 5 will be developed into approximately 29 affordable rental homes under the Neighborhood Construction Program. The sites will need to undergo environmental analysis and, eventually, Uniform Land Use Reform Procedure (ULURP) for disposition and other potential actions.

- **97 West 169th Street**
  This is a site adjacent to Corporal Fischer Park that was approved for a non-open space use through State legislation and signed by Governor Cuomo in September 2017. HPD will prioritize 100% affordable housing and deep affordability at this site, and will issue an RFP for the development of senior housing. A development team will be selected through a competitive RFP process.

- **Morrisania Diagnostic and Treatment Center Surface Lot**
  This is a surface lot owned by NYC Health and Hospitals (H+H), behind the Morrisania Diagnostic and Treatment Center at 1225 Gerard Avenue. The site's address is approximately 1252 River Avenue, adjacent to the elevated train (4 line), and sits on a slope with a raised foundation, which serves to level the lot. The site is currently used for parking, and the Administration is evaluating how current uses can be temporarily relocated and/or incorporated into new affordable housing development on site. The City will recommend to the H+H board that the health clinic parking lot be developed as affordable housing with parking for clinic staff, in partnership with HPD. Approval is pursuant to review by the H+H Board and City Council. In addition to prioritizing 100% affordability, HPD will set aside at least 20% of all homes for households earning up to 30% of theAMI. A development team will be selected through a competitive RFP process.

- **1640-1642 Anthony Avenue**
  This site is located at Anthony Ave and includes a small vacant lot adjacent to an active ACS facility. This small vacant site, a former play lot, is owned by Administration for Children's Services (ACS). The site sits adjacent to the Lower Bathgate Child Care Center and across an entrance to Claremont Park. The administration will continue evaluating feasibility and determine the best course of action for the site's development. HPD will prioritize 100% affordable housing on this site. A development team will be selected through a competitive RFP process.

- **1337 Jerome Avenue**
  This site is a small vacant, single-story commercial building owned by HPD and located in the Jerome Avenue rezoning area. HPD will continue evaluating feasibility of development of mixed-use affordable housing on this site.

Timeline: HPD will release one RFP in 2018, with the other RFP(s) to be released in mid-2019 (Q2-3).

IMPROVE ACCESS TO AFFORDABLE HOUSING

20. Make it easier for residents to understand, prepare for, and complete the affordable housing application process

HPD continues to take steps to help residents become better prepared to submit complete and accurate applications. In addition to revamping its affordable housing application and lottery education materials, HPD will recruit and train Housing Ambassadors in the Jerome Avenue area, which are local community groups that provide free technical assistance to residents who wish to apply for affordable housing.

Timeline: Recruit local Housing Ambassadors in FY 2019

PROMOTE ECONOMIC OPPORTUNITY IN AFFORDABLE HOUSING DEVELOPMENT

21. Expand local hiring incentives in HPD-financed developments

In all HPD RFPs for the development of City-owned property, respondents must demonstrate a plan for outreach to residents of the local community district related to employment opportunities generated by the proposed project. Applicants will be required to comply with their outreach plans and report regularly on outreach activities. Regarding the development of private sites, beginning with FY 2019 projects, applicants requesting city subsidies will be encouraged to demonstrate a plan for outreach to residents of the local community district related to employment opportunities generated by the proposed project. Private site developers submitting plans will be required to comply with these plans and report regularly on outreach activities. In addition, HPD will continue implementing HireNYC, which requires that any housing development receiving $2 million or more in HPD subsidy post open positions with the Workforce1 system and consider qualified candidates. Jerome Avenue area residents will be able to apply for jobs through the City's HireNYC program at nearby Workforce1 Centers. See the "Workforce Development and Small Business" section for more information.

Timeline: Ongoing; FY 2019 for private sites

22. Continue upholding responsible contracting and labor standards for affordable housing projects receiving City subsidy

HPD will require disclosure and background checks through its Sponsor Review process to ensure the integrity of individuals and entities seeking to do business with HPD (e.g., as developers or contractors). Through this review process, some of which will be performed in consultation with the Department of Investigation (DOI), HPD's Sponsor Review Unit will continue to ensure that sponsors are honest, reliable stewards of public resources. Through the sponsor review process, HPD attempts to identify:

- History of noncompliance with local, state and federal rules and regulations; including violations, administrative findings and debarments;
- Pending and prior litigation; and
- Negative contracting history with the city.

Timeline: Ongoing.

EDUCATION

23. Build a new Community School District (CSD) 10 Elementary school at 2355 Morris Avenue

The School Construction Authority (SCA) has determined that a Department of Education (DOE)-controlled site adjacent to the existing MS 363 is feasible for construction of a new, approximately 458 seat primary school. The school will include a state-of-the art gymatorium among its amenities, as well as an office space that could be utilized by an afterschool provider. The SCA will begin design in July 2019, with the goal of opening a new school in September 2023.

Timeline: Design to commence July 2019, Construction commencement in Fiscal Year 2021.
Funding: Approximately $60 million

24. Build new Community School District 9 Elementary school

The SCA is pursuing multiple sites in CSD 9 with the goal of securing one for a new primary school. The Administration commits to building a school on one of these, or any other subsequently identified site, to hold approximately 458 seats. The school will include a state-of-the art gymatorium among its amenities.

Timeline: SCA will meet with Council Member Gibson no later than July 2018 to update her on progress identifying a site and regularly thereafter until a site is identified. Subject to all public approvals needed, SCA will initiate design within 3 months of completion of acquisition.

25. Complete PS 33 Annex

The PS 33 annex will add 388 much-needed elementary school seats to District 10. This new annex is anticipated to be completed by September 2021.

Timeline: Construction to begin 2019, with project completion and school opening in September 2021.
Funding: Approximately $70 million

26. Commit to fund current Capital Plan Identified Need in Community School Districts 9 and 10 in the next Capital Plan

According to the November 2017 Amendment of the 2015-2019 SCA Capital Plan, CSD 9, Subdistrict 1 has an unfunded Identified Need of 572 seats. CSD 10, Subdistrict 4 has an unfunded Identified Need of 892 seats. The Administration commits to funding all currently unfunded Identified Needs in Districts 9 and 10 in the next Capital Plan.

Timeline: Fiscal Years 2020-2024.

27. Construct a new "stand-alone gymnasium" at PS 246 Poe Center School

Timeline: Design to begin in calendar year 2018.
Funding: Approximately $9 million

28. Explore Community School District 10 school rezoning

The DOE will work closely with the Superintendent and Community Education Council (CEC) for CSD 10 to plan for the new school and address attendance zone needs, which may include rezoning.

Timeline: Ongoing.

OPEN SPACE AND PARKS

29. Develop Corporal Fischer Park

The development of this new, approximately 1/2 acre park is an important opportunity to better serve local residents. Department of Parks and Recreation (DPR) will design and build this new park with community input.

***Timeline*:** Design to start in FY 2019.
Funding: $4.6 million

30. Renovate and Expand Grant Avenue Park

The development of Grant Park offers an opportunity to expand open space and create a sizable neighborhood park for this community. This capital project will expand the existing park by closing Grant Avenue between 169th and 170th Streets, responding to strong community desire for increased open space and recreational opportunities. The full renovation is expected to include roadbed conversion, infrastructure work, lawn area, and 2-3 sports courts.

***Timeline*:** Design to start in FY 2019.
Funding: $25.7 million

31. Activate and Enhance Bridge Playground

Council Member Vanessa Gibson and Borough President Ruben Diaz have each allocated $500,000 towards design and construction of a new playground on this site. The Administration commits an additional $1.6 million of funding to expand upon that previously envisioned playground project. The project is expected to include play equipment for children, and fitness equipment for adults.

Timeline: Design to start in FY 2019.
Funding: $2.6 million ($1.6 million Mayoral, $500,000 City Council, $500,000 Borough President)

32. Improve and Increase Access to Aqueduct Walk

The City will continue to explore opportunities to increase and improve access in the southern portions of Aqueduct Walk, augmenting the existing linear park as well as expanding and enhancing the existing playground amenities.

2a. Reconstruct Morton Playground

Morton Playground will be redesigned and reconstructed, improving access and adding upgraded park amenities.

Timeline: Design to start in FY 2019.
Funding: $5.2 million

2b. Increase and improve access in southern reaches of Aqueduct Walk.

The City will fund and complete a Capital Project Scope Development (CPSD) analysis looking at opportunities to increase and improve access to the southern reaches of Aqueduct Walk, from Morton Playground to West Burnside Avenue. The study will examine feasibility and develop associated costs for expanding connectivity and reopening the currently disconnected and inaccessible sections of the park.

Timeline: CPSD analysis to be completed in FY 2020.
Funding: $8-10 million towards CPSD study and implementation of study recommendations.

33. Develop a new park at 1801-1805 Davidson Avenue

Expedite transfer of 1801-1805 Davidson Avenue (Block 2867, lot 142 lot) to the Department of Parks and Recreation (DPR) to design and build this new park with community input. If site development as a park is deemed infeasible within the budget allocated, if the Council Member and Community Board indicate in writing that other parks projects have emerged as higher priorities based on more detailed cost estimates from DPR, or if unresolved structural issues with the neighboring buildings would make the site unsafe for open space use, DPR will, in consultation with the community and Council Member, re-allocate funds to (an)other project(s) within the same Council District.

***Timeline*:** Design to start in FY 2020, subject to resolution of any structural issues with the neighboring buildings that might affect the safety of the site for open space.
Funding: $11.2 million

33. Rename park at West 181 Street between Aqueduct Avenue and Dr. Martin Luther King Jr. Boulevard Commemorating Roscoe Brown and the Tuskegee Airmen

DPR will work with the Council Member, Community Board and advocates to advance the renaming of this site to Roscoe Brown Park and installation of signage.

Timeline: End of 2018

34. Reinvigorate Department of Parks and Recreation Greenthumb community gardens

DPR will connect with each DPR Greenthumb community garden group in CDs4 and 5 and develop a plan to reinvigorate underutilized community gardens. DPR will offer technical support, resources, and collaborate on events and programming that will activate the gardens. DPR will also enforce hours of operations to ensure community members have adequate access to these spaces.

Timeline: FY 2019.

WORKFORCE DEVELOPMENT AND SMALL BUSINESS

35. Create a new "Jerome Program Manager" position, which will oversee all business and workforce strategies related to the Jerome Avenue rezoning.

The position, housed at SBS, will provide a central contact point for businesses seeking assistance with compliance, business management, legal services, and relocation resources from SBS and partnering organization.

Timeline: FY 2019 - FY 2022.
Funding: $80,000 annually FY 2019 - 2022

36. Design and Deliver Workforce Training for Auto Workers

SBS commits to working with a local partner to design and deliver a training program(s) tailored to the need of autoworkers. The program(s) will prepare autoworkers for new jobs in the auto industry or other in-demand industries, including construction programs like NYC Green Jobs Corps. The program would only be open to Jerome Avenue-area auto workers.

SBS will also work with the JobsFirst Network as a community partner to connect Jerome Avenue youth with the West Farms Workforce 1 Career Center, which provides targeted services for out of school, out of work youth over the age of 18. SBS's Community Partner Coordinators in the Bronx Workforce 1 Career Centers will work with JobsFirst to build this relationship.

Timeline: FY 2019 - FY 2020.
Funding: $312,250 in total contracts

37. Conduct Workforce Outreach and Recruitment Events

SBS will conduct outreach in the district, including recruitment events, at least every other week to connect individuals to the Workforce 1 training and employment services based on demand. Workforce 1 will hold regular recruitment events in the district where recruiters will be screening candidates to fill open jobs for current employers. Recruiters will screen and assess individuals for skills training in several sectors including: healthcare, industrial, construction, food service, and retail. Recruitment Events will include:

- Events in the neighborhood with local community partners;
- Events at the Council member's offices; and
- Monthly deployment of the SBS Mobile Outreach Unit.

Timeline: Launch FY 2019 through FY 2023

38. Launch Auto Business Compliance and Retention Initiative

City Hall will pursue partnership with the New York State Department of Environmental Conservation (DEC) to connect their services to businesses throughout the Jerome Avenue area.

The City will also fund a community partner organization to follow up with businesses that have received DEC services and connect these businesses to additional local assistance, including the business services provided by SBS. Follow-up will include door-to-door visits, meetings, connection to workshops surveys, and assistance accessing capital.

Timeline: Launch FY 2018 through FY 2022.
Funding: $200,000 (2 years, FY 2019 - FY 2021)

39. Create Jerome Avenue Business Grant Program

SBS will create a Jerome Avenue Business Grant Program to help businesses that are directly displaced and need to adapt to changes in the neighborhood. Each business that may be directly displayed will be eligible to receive grants of up to $20,000 per business. Relocation reimbursement grants will be disbursed on a rolling basis. The business owner is responsible for identifying a new location within New York City. SBS will coordinate with local community organizations and elected officials to conduct regular door-to-door outreach to notify all businesses along the corridor of these grant and loan programs.

Jerome Avenue Business Grant Eligibility Criteria:

- Small Business Administration (SBA) defined small business;
- Operating in the neighborhood at the time of the rezoning;
- Business is operating as a use that is non-compliant as a direct result of the rezoning (ex: automotive, manufacturing, etc.); and
- Evidence of eligible relocation expenses incurred for reimbursement.

Timeline: Launch FY 2018 through FY 2022.
Funding: $1,540,000

40. Work with Jerome Avenue businesses to connect them to capital access services

SBS works with business owners to assess their financing needs, identify appropriate financing options, and connect businesses to our network of over 40 lenders. SBS will

connect Jerome Avenue-area to capital through on-site outreach events and the City's NYC Business Solutions Centers.

Timeline: Ongoing

41. Deploy the SBS Mobile Unit to the Jerome Corridor monthly

The SBS Mobile Unit will provide small business services and workforce development services (such as application screenings and interviews with employers) on a regular basis. The City will coordinate with local Council Members on outreach strategies, deployment schedule, locations, and specific focus areas.

Timeline: Launch FY 2018 through FY 2022.

42. Connect Jerome corridor residents to construction training programs.

Through the NYC Green Jobs Corps, SBS will screen Jerome Avenue residents for construction trade pre-apprenticeship training opportunities and free construction trade training. Partners in the Green Jobs Corps include Helmets to Hard Hats, Edward J. Malloy Initiative for Construction Skills and Non-Traditional Employment for Women (NEW) and Building Works, all of whom are recognized as pre-apprenticeship trainers by the Building Construction Trades Council. This construction trade training includes pre-apprenticeship training for careers in the green economy, including retrofitting buildings for increased energy efficiency. In coordination with the Council Members, SBS will organize outreach events to screen and assess jobseekers for pre-apprenticeships through the program. Individuals with a high school equivalency are eligible for pre-apprenticeship programs and those who may not be ready are referred to community partners and local institutions who provide additional adult and young adult education services.

Additionally, SBS will connect jobseekers to construction safety training programs as these programs become available, and screen residents for employment opportunities.

Timeline: Ongoing.

43. Partner with Council Members to launch the Jerome Avenue Local Hiring and Responsible Contracting Working Group

This task force will be led by Council Members Gibson and Cabrera and will explore the feasibility of potential new policies to hold developers and contractors accountable for providing real and substantial job opportunities to the residents of the Bronx. This work will focus on projects receiving public subsidies within the Jerome Corridor and will consider: 1) guidelines for developing contractor local hiring plan, 2) guidelines for execution of local hiring plans, including hiring timeline requirements, 3) guidelines for contractor's communication with subcontractors, 4) methods for tracking and reporting hiring strategy outcomes, 5) suggestions for oversight/remediation, 6) proposals for more robust pre-construction skill training curriculum, and 7) consideration for future funding. The task force would also explore the feasibility of enacting and enforcing responsible contractor provisions. This task force would include but not be limited to representatives

from HPD and SBS, community stakeholders, as well Council Members Gibson and Cabrera's offices, the Office of the Deputy Mayor for Housing & Economic Development.

Timeline: Launch 2018

TRANSPORTATION AND PUBLIC SAFETY

Transportation and Streetscape

44. Implement "Under the EL" Public Realm Improvements

The City will make public realm improvements along 16 blocks and pedestrian improvements at critical intersections along Jerome Avenue. These improvements will create safe and vibrant sidewalks and open spaces, contributing to consistent, distinctive streetscape corridor. Access and mobility will be improved across Jerome Avenue, connections strengthened to adjacent retail and residential uses, and new public space destinations for pedestrians will be created. Specific improvements include:

- Bus Stops Under-the-El improvements at six intersection along Jerome Avenue at North Street, East 182nd Street, East 181st Street, Burnside Avenue, Tremont Avenue, and East 177th Street. Improvements will include 12 bus bulbs, new sidewalk, benches, wayfinding, new pedestrian signals, Americans with Disabilities Act (ADA) upgrades, and real time passenger information;
- Plaza Drive Public Space Improvements: Extension of public space along Jerome Avenue from Keltch Park to Marcy Place, including new sidewalks, curbs, street trees, benches, street lighting, and an improved parking facility along Plaza Drive;
- Gerard Triangle Safety Improvements – Jerome Avenue at Gerard Avenue and East 169th Street: Reduced pedestrian crossing distances, new crosswalks, sidewalks, curbs, street trees, benches, and new street lighting;
- Pedestrian Improvements at the intersection of Cromwell Avenue, River Avenue and Jerome Avenue at East 169th Street: Reduced pedestrian crossing distances, new crosswalks, sidewalks, curbs, street trees, benches, and new street lighting;
- Redesign of intersection of River Avenue and Jerome Avenue at East 168th Street: Reduced pedestrian crossing distances, new crosswalks, and new sidewalks;
- Improvements at Cromwell Avenue, Jerome Avenue, and East 167th Street: Reduced pedestrian crossing distance, new crosswalk, new sidewalk, expansion of existing Greenstreet, a new Greenstreet at Cromwell Avenue, new curb, benches, new street lighting throughout; and
- Corridor-wide El Space and Street Lighting Upgrade – replacement of 132 existing light poles on Jerome Avenue with CityLight or LED pedestrian lighting as applicable based on height restraints under elevated train structure. New pedestrian scale lighting where CityLight is not feasible.

Timeline: 2019 design, construction completed by 2024.
Funding: $29.5 million

45. Implement Commercial Corridor Improvements

The commercial corridor improvements will improve pedestrian crossings throughout the Jerome Avenue corridor intersections. These improvements address pedestrian safety concerns and promote street activation. Improvements to the underpasses under Grand Concourse shall also be considered as part of the scope of work. Specific improvements include:

- Burnside Avenue between Harrison Avenue and Grand Concourse: Improved pedestrian crossing throughout corridor, roadway resurfacing, high-visibility crosswalks, benches, wayfinding, new pedestrian signals, replacement of existing street lights with CityLights (24), ADA upgrades, bike racks, real time passenger information, and street trees;
- E 170th Street between Plaza Drive and Grand Concourse: Improved pedestrian crossing throughout corridor, roadway resurfacing, high visibility crosswalks, benches, wayfinding, new pedestrians signals, replacement of existing street lights with City Lights (29), ADA upgrades, bike racks, real time passenger information, and street trees;
- E 167th Street between Plaza Drive and Grand Concourse: Improved pedestrian crossing throughout corridor, roadway resurfacing, high-visibility crosswalks, (2) City-El Kits at River Avenue, benches, wayfinding, new pedestrian signals, replacement of existing street lights with CityLights (24), ADA upgrades, bike racks, real time passenger information, and street trees; and
- Tremont Avenue Safety Improvements:
  - Intersections on Tremont Avenue & Harrison Avenue, Tremont Avenue & Grand Concourse;
  - Intersections on Sedgwick Avenue & Tremont Avenue, Sedgwick Avenue & Undercliff Avenue, Sedgwick Avenue & Cedar Avenue: Improvements include reduced pedestrian crossing distances, new crosswalks, new sidewalk, improved and safer access to Roberto Clemente State Park, new curb, benches, pedestrian wayfinding; and
  - Hall of Fame Terrace and University Avenue Improvements: Reduced pedestrian crossing distances, new crosswalks, new sidewalk, new Greenstreet at University Avenue, new curb, street trees, benches, and new street lighting throughout.

Timeline: 2019 design, construction completed by 2024.
Funding: $20.3 million

46. Repave key streets along the corridor

DOT will resurface the following streets within the Jerome Ave Neighborhood Study Area:

- Jerome Avenue from E 175th Street to E Tremont Avenue
- E 179th Street between Jerome Ave and Grand Concourse
- Creston Avenue from E 178th St to E 183rd St
- E 163rd St from Grand Concourse to Teller Ave

- Sheridan Avenue from E 161st Street to E 167th Street
- DOT will inspect streets on a regular basis to include in annual resurfacing schedule.

Timeline: Spring 2018 for inspection and Summer/Fall 2019 for resurfacing.

47. Make Improvements to Cross Bronx intersection of Cross Bronx and Jerome Avenue

As part of the Safety Improvement Project at the intersection of the Cross Bronx Expressway and Jerome Avenue, DOT will install new crosswalks, pedestrian space, and traffic signals across Jerome Avenue and the Cross Bronx exit ramps.

Timeline: Summer 2018.

48. Reconstruct key step streets and commit to regular cleaning and trash removal

DOT will complete key projects underway or forthcoming on Jerome Avenue step streets. New York City Department of Sanitation (DSNY) will clean step streets as needed and in response to cleaning requests from community leaders, elected officials, and 311.

- DOT will complete the Clifford Place Step-Street Reconstruction using Inwood's 215th Street step street as a model with, seating, LED lighting, and a bike channel. DSNY will clean step streets as needed and in response to cleaning requests from community leaders, elected officials and 311.
  Timeline: Clifford Place under construction.
  Funding: $7 million

- Davidson Avenue Step-Street Reconstruction using Inwood's 215th Street Step-Street as a model with, seating, LED lighting, and a bike channel.
  Timeline: 2019 design, construction competed by 2022.
  Funding: $7 million

49. Continue increased sanitation services implemented as part of the Mayor's Rat Reduction Initiative

In 2017, the City increased Sanitation service in the Bronx rat mitigation zone, which includes the entirety of the Jerome Avenue corridor, as part of the Mayor's Rat Reduction Initiative. All litter baskets in the zone are now collected at least once per day, including on Sundays and holidays. In addition, the City increased curbside trash collection from three days per week to four days per week. DSNY will also expedite a review of any requests for additional street sweeping regulations and alternate side parking in the Jerome corridor as a result of additional development.

Timeline: Ongoing.

Transit

50. Support Metropolitan Transportation Authority (MTA) ADA accessibility project at the 170 Street Station on the 4 line

The MTA has preliminarily identified the 170th Street station as one of the five City-priority stations to receive access improvements. These projects were developed as part of the City's $2.5 billion contribution to the MTA's 2015-2019 Capital Program. Under the proposal, the MTA will add elevators to the station and make it fully ADA accessible.

Timeline: Pending MTA construction schedule.

51. The City will advocate to MTA New York City Transit (NYCT) to provide additional peak hour bus service based on growth in the area

The rezoning was found to create significant adverse impacts for the Bx11, Bx32, Bx35 and will likely require additional peak hour buses. The DEIS analysis did not include Bx13, which also has significant ridership. The City will request that NYCT regularly review crowding on these four lines and increase bus frequencies as needed. The City will also request that NYCT study the potential need for increased peak hour buses in the Highbridge neighborhood.

Public Safety

52. Install NYPD Argus security cameras within the Jerome Avenue rezoning area along Jerome Avenue corridor and intersecting commercial corridors

The NYPD will site and install 20 cameras along the corridor in consultation with local Council Members.

Timeline: Ongoing.
Funding: $704,380

53. Address NYPD 44th Precinct parking issues through increased enforcement and changing nearby parking regulations.

Expand NYPD parking at the intersection of River Avenue and Jerome Avenue. Implement modifications to West Clarke Street to convert to a one-way street and increase parking spaces. The department will also take additional steps to strengthen compliance among officers with existing street parking regulations. The protocol will include, but not be limited to, more frequent verbal communication by the desk officer at daily roll calls, the posting and annual distribution of written materials to officers about the relevant street parking regulations and the consequences for violating those rules.

Timeline: Ongoing

54. Address 46th Precinct Facility Challenges

The City will initiate a process to conduct a site search for alternative locations that can later be assessed for feasibility of relocating the NYPD 46th Precinct to a more central location along the Jerome Avenue corridor. The City will report the findings of this site

search, including a list of potential sites, to the local Council Member. The City will explore interim solutions (including the potential for on-site parking stackers) to relieve neighborhood parking congestion.

Timeline: Complete site search by FY 2020.

COMMUNITY RESOURCES

55. Provide afterschool programming at new school to be located at 2355 Morris Avenue

Community center administrative space will be incorporated into the design of the District school, and the City will fund afterschool services at the new school when it opens.

Timeline: Pending completion of new school at 2355 Morris Avenue.

56. Invest in improvements and expansion of Davidson Community Center

The Davidson Community Center facility (located at 2038 Davidson Avenue) provides much-needed social and community services in the neighborhood and frequently hosts community events. To invest in this important facility and make it accessible, the City will install an elevator and expand the building to a full second floor.

Timeline: Pending DDC scheduling and final assessment of site conditions.
Funding: $1.9 million

PUBLIC HEALTH

57. Convene Jerome Avenue Public Health Taskforce & Neighborhood Health Plan

DOHMH's Center for Health Equity will partner with the Council Members and local stakeholders to form the Jerome Avenue Public Health Taskforce. This Taskforce will develop and implement a Neighborhood Health Plan to address health outcomes in the Jerome Avenue Study area.

The Jerome Avenue Public Health Taskforce will include local partners from the healthcare sector, community-based organizations, faith-based organizations, community boards, educational institutions, local residents, and advocates, among others. The taskforce will work together for 18 months to develop and begin implementation of a Neighborhood Health Plan for CDs 4 & 5 to address key community health priorities including healthy food access, air quality and environmental health, access to healthcare, and construction mitigation strategies (including noise, pollutants, pest control, etc.).

***Timeline*:** Commencing Spring 2018

58. Increase local access to healthy foods

Health Bucks are $2 coupons distributed by DOHMH that can be used to purchase fresh fruits and vegetables at all NYC farmers markets. The City will conduct targeted outreach to qualified Community-Based Organizations (CBOs), in coordination with the local Council Members' offices, with the goal of increasing the number of organizations that apply to distribute Health Bucks. Increasing access to healthy food will be a focus of the planning efforts of the Jerome Public Health Task Force.

Timeline: Outreach to begin Q2 2018

TRACKING COMMITMENTS

59. Participate in regular meetings with Council Members to review progress on POA commitments

Meetings to include DCP, HPD, SBS, and other agencies as requested by Council Members.

Timeline: Launch May 2018

APPENDIX C:
Submission Forms

Form A: Completeness Checklist and Applicant's Letter

A1 – Completeness Checklist (Tab A)

Before completing the following forms, please see instructions in **Section IX (Submission Requirements)**.

Tab	Form	✔
A	**Completeness Checklist and Applicant's Letter**	
	1. Completeness Checklist (Form A-1)	
	2. Respondent's Letter (Form A-2)	
B	**Project Narrative/Development Summary**	
	1. Project Narrative (*provided by Applicant*)	
	2. Proposal Summary (Form B)	
C	**Trade Secrets** *(optional)*	
D	**Developer Respondent Description**	
	1. Development Team Information and Applicant Questionnaire (Form D-1)	
	2. Not-For-Profit Organization Form (Form D-2)	
	3. Additional information on Project Staffing and Project Management (*optional*)	
E	**Development Team Experience and Capacity**	
	1. Residential Development Experience and Current Workload (Form E-1)	
	2. Residential Management Experience and Current Workload (Form E-2)	
	3. Management Questionnaire (Form E-3)	
	4. Additional Evidence of Experience and Qualifications (*provided by Applicant*)	
	5. Affirmative Capacity Statement (*provided by Applicant*)	
F	**Development Schedule/Phasing Plan** (*provided by Applicant*)	
G	**Financing Proposal**	
	1. Financing Proposal (Form G)	
	2. Financing Narrative (*provided by Applicant*)	
H	**Financing Letters of Interest and Historical Financing Letters of Interest/Award Letters** (*provided by Applicant*)	
I	**Assets Statements** (Form I)	
J	**Development Program** (*provided by Applicant*)	
K	**Community and Economic Development** (*provided by Applicant*)	
L	**Design Narrative** (*provided by Applicant*)	
M	**Architectural and Urban Design Drawings** (*provided by Applicant*)	

97 West 169th Street RFP
Form A2 – Applicant's Letter

NYC Department of Housing Preservation and Development
Office of Neighborhood Strategies
Division of Planning and Predevelopment, Predevelopment Unit
100 Gold Street, Room 9X
New York, NY 10038
Attention: Zlata Kobzantsev

Re: Proposal in Response to the 97 West 169th Street RFP

Dear Ms. Kobzantsev:

This letter is being submitted in connection with my proposal ("Proposal") submitted in response to the Request for Proposals ("RFP") issued by the Department of Housing Preservation and Development ("HPD") of the City of New York ("City") for the 97 West 169th Street RFP.

I have received, read, and understand the provisions of the RFP. I understand that selection of an Applicant ("Applicant") under the RFP for disposition of the Development Site(s) and the development of the Project described in the RFP ("Project") will mean only that HPD will commence negotiations with such Developer regarding the development of the Development Site(s).

I recognize that any negotiations with HPD will be subject to the following terms and conditions:

1. The commencement of negotiations will not represent any obligation or agreement on the part of the City, which may only be incurred or entered into by a written agreement which has been (i) approved as to form by the City's Law Department, (ii) approved by the Mayor after a hearing on due notice; and (iii) duly executed by the Applicant and the City. The Negotiation Letter will only indicate HPD's intention to commence negotiations, which may ultimately lead to the execution of such an agreement.

2. The Applicant will not have permission to enter upon the Development Site(s), which permission will only be granted, if at all, in the form of a license agreement duly executed by the Applicant and the City. The execution of any such license agreement, if it occurs, will only indicate that the City has granted permission for the Applicant to enter onto the Development Site(s) for the limited purposes stated in the scope of work set forth therein, and will not indicate that the City reached any other agreement with the Applicant regarding the Development Site(s) or the Project.

3. The following requirements will have to be satisfied prior to the disposition of the Development Site(s):

   The disposition of the Development Site(s) and tax exemptions to be granted, if any, must be reviewed and approved in accordance with all applicable HPD and City policies, which include, but are not limited to, the following:

   a. The Applicant, any other potential grantee of the Development Site(s), and their respective Principals must successfully undergo a background check concerning their suitability to do business with the City.

b. The Development Site(s) will not be sold to any person or entity which, or to any entity with a Principal who: (i) has not fulfilled development responsibilities undertaken in connection with the City or other governmental entities, (ii) is in default on any obligations to the City, (iii) is a former owner of the Development Site, or (iv) has lost real property to the City in tax or lien enforcement proceedings.

c. The price and other terms for the disposition of the Development Site(s) and the tax exemption(s) to be provided, if any, will be consistent with applicable City policies.

d. The grantee must execute legal documents in form and substance acceptable to HPD and in form approved by the City's Law Department.

4. During negotiations, the Applicant must diligently, competently, and expeditiously comply with all requirements communicated to the Applicant by HPD.

5. The design of the Project must comply with any applicable HPD development requirements and guidelines.

6. Either HPD or the Applicant may terminate negotiations at any time with or without cause. Negotiations may be terminated if Applicant does not commence construction within eighteen (18) months from the date of the Negotiation Letter.

7. If negotiations are terminated by either HPD or the Applicant, whether with or without cause, or if negotiations terminate automatically, then neither the City nor the Applicant will have any rights against or liabilities to the other.

8. The City is not obligated to pay, nor will it in fact pay, any costs or losses incurred by the Applicant at any time, including, but not limited to, the cost of: (i) any prior actions by the Applicant in order to respond to any selection process, or (ii) any future actions by the Applicant in connection with the negotiations, including, but not limited to, actions to comply with requirements of HPD, the City, or any applicable laws.

Very truly yours,

_____
Signature

_____
Title

_____
Applicant

Form B – Proposal Summary

**The summary below MUST be consistent with the rest of the Proposal (e.g. Financing Proposal and Design Narrative).*

Unit Summary

Building Name/Description	Rental Units	Homeownership Units	Super Units	Total Units	Gross Square Feet
				0	
Total					
% of Total Project				-	-

Affordability Summary

Building Name/Description	__%AMI	__%AMI	__%AMI	__%AMI	__%AMI
Total Units					
% of Total Project					

Type of Housing	Y/N if included in proposal	Units
Supportive Housing Units*		
Senior Units (62+)*		
Homeless Units*		
Other _____ *		

*These populations may overlap

Unit Count by Type

Building Name/Description	Studio	1BR	2BR	3BR/4BR
Total Units				
% of Total Project				

Average Unit Size (SF)

Building Name/Description	Studio	1BR	2BR	3BR/4BR

Development Program (residential, commercial, community facility, etc.)

Building Name/Description	
Use	**Gross Square Feet**
Residential Units	
Accessory Social and Welfare Facilities, amenities, etc (Total and each space listed separately)	
Circulation and mechanical areas	
Commercial (Rentable and/or condomium)	
Community Facility (Rentable and/or condomium)	
Open Space	
Parking (if applicable)	
Other _____	
Total Gross Square Feet	

*add additional tables if more than one building/phase

Rental Assistance and Services Funding (if applicable)

Building Name/Description	Rental Assistance (Number of units and type of rental assistance)	Services Contracts (Number of units and source of contract)

Architectural Summary

Building Name/Description	Maximum Building Height	Ground Floor Height	Typical Floor to Floor Height (2nd floor and above)	Construction Method	Residential Hard Costs (per GSF)	Façade Materials	HVAC System	Number of Parking Spaces	Cellar Excavation (Full, Partial, or Minimal)	Required Zoning Variance (if any)	AIRS Zoning? (Y/N)

Form D: Development Team Information and Applicant Questionnaire

D1 – Development Team Information (Tab D)

All applicants shall complete pages 1 - 3 of this form. Applicants that include a not-for-profit entity as principal of the developer or part of the Development Team shall also complete pages 4 -6.

Name of Applicant: _____

Name of Contact Person: _____ E-mail: _____

Mailing Address: _____

Telephone No: _____ Alternate Phone: _____

COMPOSITION OF APPLICANT ENTITY:

1. Type of organization (i.e. partnership, corporation, limited liability company, joint venture):_____

2. Provide the following information about all principals of the applicant. For corporations, provide the names of the officers and any shareholders owning 10% or more; for partnerships, provide the names of all general partners. For joint ventures, provide the information separately for each entity that comprises the joint venture. Also, state the role(s) that each principal would play in the development of the sites, using the categories specified below.

NAME OF ENTITY # 1:_____ Percent Interest in Proposed Project:_____

- ☐ M/WBE (attach certification)
- ☐ Non-Profit

PRINCIPALS: Name/Position/Title	Home Address	Role*	% Interest in Entity

NAME OF ENTITY # 2:_____ Percent Interest in Proposed Project:_____

- ☐ M/WBE (attach certification)
- ☐ Non-Profit

PRINCIPALS: Name/Position/Title	Home Address	Role*	% Interest in Entity

* Role Categories: GP = General/Managing Partner; GC = General Contractor; F = Provides financing, inactive; A = Architect; L = Legal Services; MA = Managing Agent; O = Other (specify)

Use additional sheets as necessary.

3. Provide the names, addresses, e-mail addresses, and telephone of members of the development team to the extent that these have been decided; if unknown, enter “N/A”.

DEVELOPMENT TEAM:

Architect:	Marketing Agent:
General Contractor:	Managing Agent:
Legal Counsel:	Social Service Provider:
Other:	Other:

Is there an identity of interest between any principals of the developer and any other entities that make up the development team? Yes [ ] No [ ]

If yes, please explain.

4. Has any principal identified above, or any organization in which the principal is or was a general partner, corporate officer, or owned more than 10% of the shares of the corporation, been the subject of any of the following:

(1) Conviction of, or charges currently pending for, arson, fraud, bribery, or grand larceny any felony or crime of dishonesty?

Yes [ ] No [ ]

(2) Noncompliance with fair housing or anti-discrimination laws, any applicable codes or ordinances, labor laws, or construction laws?

Yes [ ] No [ ]

(3) Had an ownership or management interest in real property that was the subject of a tax lien sale, was or is the subject of tax, mortgage, or lien foreclosure or enforcement proceedings, or is currently in tax or mortgage arrears?

Yes [ ] No [ ]

(4) Had an ownership or management interest in a property with respect to which HPD commenced an action in the Housing Part of the Civil Court, or with respect to which an administrator was appointed pursuant to Article 7-A of the Real Property Actions and Proceedings Law?

Yes [ ] No [ ]

(5) Denial of a certification of no harassment or any administrative or judicial finding of harassment?

Yes [ ] No [ ]

(6) Default or poor performance rating under any agreement with, or suspension or debarment by, any governmental entity?

Yes [ ] No [ ]

(7) In the last seven years, filed a bankruptcy petition or been the subject of involuntary bankruptcy proceedings?

Yes [ ] No [ ]

(8) In the last five years, failed to file any required tax returns, or failed to pay any applicable Federal, State of New York, or City taxes or other charges?

Yes [ ] No [ ]

(9) Had any negative findings from the City's Department of Investigation?

Yes [ ] No [ ]

If the answer to any question is yes, provide the following information about each instance: name of principal(s); name(s) of organization(s) or corporation(s); principal's status in the organization or corporation (e.g. officer), the date of the action, and current status and disposition.

CERTIFICATION

[This certification must be signed by one of the principals listed above; if the applicant is a joint venture, it must be signed by a principal of each entity that comprises the joint venture.]

I certify that the information set forth in this application and all attachments and supporting documentation is true and correct. I understand that the City of New York will rely on the information in or attached to this document and that this document is submitted to induce the City of New York to select this proposal for development of a site.

I understand that this statement is part of a continuing application and that until such time that the subject project is finally and unconditionally approved by the City of New York, I will report any changes in or additions to the information herein, and will furnish such further documentation or information as may be requested by the City of New York or any agency thereof.

I understand that if I receive preliminary designation to develop this site, I must submit all additional disclosure forms required.

Name of Organization	Signature
Date	Print or Type Name and Title
Name of Organization	Signature
Date	Print or Type Name and Title

D2 – Not-For-Profit Organization: Applicant Description

Name of Organization:_____

Office Address:_____

City:_____State:_____ZIP Code_____

Executive Director:_____

Contact Person:_____ Title:_____

Phone No._____ FAX No._____

ROLE OF ORGANIZATION IN THE PROJECT: Describe the role that the not-for-profit organization will play, such as developer, marketing agent, etc.

Date Established:_____ Date Incorporated:_____

CERTIFICATION: I CERTIFY THAT THE INFORMATION SET FORTH IN THIS DISCLOSURE STATEMENT AND ITS ATTACHMENTS IS TRUE AND CORRECT.

_____
Signature of Officer

_____
Print Name and Title

_____
Date

Use additional sheets as necessary.

D2 – Not-For-Profit Organization: Directors, Officers, and Key Staff

Name of Organization:_____

Name and Home Address	Position and/or Office in Organization	Date of Initial Appointment	Current Occupation and Name of Employer

Use additional sheets as necessary

D2 – Not-For-Profit Organization: Major Sources of Funding

Name of Organization:_____

Provide the following information regarding your major sources of funding during the two years preceding the deadline for submission of proposals under this RFP.

Funding Source (Agency, Department, etc.)	Name of Program	Contact Person Name and Phone Number	Purposes of Funding	Dates of Funding	Funding Amount

Use additional sheets as necessary

97 West 169th Street RFP
Form E1 – Residential Development Experience and Current Workload

Site: **Developer:**

List below all residential and/or homeless shelter properties developed within the seven (7) year period preceding the deadline for submission of proposals in response to this RFP. Use additional pages as needed.

Project Name	Address	Role (a)	Type (b)	Category (c)	# of Buildings	Total # of Units	TDC	Start Date	Completion Date	Current Status (d)	Gov't Program (e)	Construction Lender (f)	Permanent Lender (f)	Property Manager (g)

(a) ROLE: Indicate the role or roles you played in the development of each property listed. If developed as part of a joint venture, indicate such by adding JV to the respective role (e.g., D/JV).
D=Developer; B=Builder; GC= General Contractor; CM=Construction Manager; F=Provided Financing; O=Other (specify)
(b) TYPE: Project Type: RH=Rental Housing; CH=Coop/Condo Housing; SF=Single Family Housing; O=Office; R=Retail; CF=Community Facility; M=Mixed Use
(c) CATEGORY: NC=New Construction; SR=Substantial Rehab; MR=Moderate Rehab
(d) STATUS: Indicate if project is Pre=Pre-development; UC=Under Construction; Com=Completed
(e) GOVERNMENT PROGRAM: Provide the name of the program, contact name, and telephone number.
(f) CONSTRUCTION/PERMANENT LENDER: Provide the name of the institution.
(g) MANAGEMENT: Indicate if you manage the project directly or use a property manager. Provide the name of the property manager used, if any. Indicate N/A if you no longer own the project.

97 West 169th Street RFP
Form E2 – Residential Management Experience and Current Workload

Name of Applicant: _____

Entity Whose Experience is Described Listed Below: _____

List below all properties managed currently or within the seven (7) year period preceding the deadline for submission of proposals in response to this RFP. Use additional pages as needed.

Property Address: Buiiding Number, Street City, State, Zip	Housing Type (i.e. 1 - 4 family homes; multifamily rental; coop; condominium, shelter)	Number of DU's/ shelter beds	Dates of Management		Section 8? (Y/N)	LIHTC? (Y/N)	Public Hsg Units (Y/N)	Owner ("Self", or provide name and phone number):
			From	To				

Page ____ of _____ (Use additional sheets as necessary)

E3 – Management Questionnaire

1. Across your portfolio, what is the typical ratio of property managers to number of units? Describe if staffing plans differ based on the funding source (e.g. LIHTC or HOME).

2. Describe the management and maintenance staffing plan envisioned for this project. If you have one, please submit a sample or project-specific Management Plan.

3. What property management certifications and licenses are held by your staff? (For example: RAM or IREM certification, tax credit certification, commercial real estate broker's license, etc.)

4. Please describe any LIHTC and/or HOME compliance coursework management staff has completed.

5. Has any property managed by the manager or owned by the owner ever had a recapture of LIHTC? If so, please explain in detail. Please include instances where you may have purchased or taken over management of a property with open compliance issues.

6. Have IRS Forms 8823s been issued for your properties, reporting noncompliance that was uncorrected at the time of issuance? If so, how many have been issued? Please include instances where you may have purchased or taken over management of a property with open compliance issues.

7. Do any properties managed by the manager or owned by an affiliate of the owner have open HOME compliance issues? If so, please explain in detail. Please include instances where you may have purchased or taken over management of a property with open compliance issues.

8. Do any properties managed by the manager or owned by an affiliate of the owner have open Class C NYC Housing Maintenance Code violations or open NYC DOB violations? If so, please explain in detail. Please include instances where you may have purchased or taken over management of a property with open violations.

9. Has the management company or any of its principals been disbarred by HUD or any other government agencies?

10. What is the vacancy rate across your portfolio as of the date of this submission? Please explain.

11. What are delinquent rents as a percentage of total rent roll across your portfolio of owned/managed properties? Please submit data showing arrears at 30, 60, and 90+ days arrearages.

12. Please submit a sample Monthly Management Report from the last year for an affordable housing property of your choosing.

97 West 169th Street RFP
Form G: Financing Submission Template

Instructions

Please complete this pro forma for the rental component of your project. Fill in the cells shaded blue. Keep cells linked and maintain calculations. If you modify given assumptions, please clearly note the changes.

Applicants should provide separate pro formas for each component of a project that will be separately financed.

Applicants must provide these forms in Excel file format on a thumb drive in addition to the hard copies submitted in the binder.

97 West 169th Street RFP

Site:

Units: -

SOURCES AND USES

Construction Sources			per DU	% of total
First Mortgage (Lender:)	#DIV/0!		#DIV/0!	#DIV/0!
Second Mortgage (Lender:)		$0	#DIV/0!	#DIV/0!
Third Mortgage (Lender:)		$0	#DIV/0!	#DIV/0!
Fourth Mortgage (Lender:)		$0	#DIV/0!	#DIV/0!
LIHTC Equity		$0	#DIV/0!	#DIV/0!
Deferred Developer's Fee		$0	#DIV/0!	#DIV/0!
Developer Equity	#DIV/0!		#DIV/0!	#DIV/0!
Other source (Specify:)		$0	#DIV/0!	#DIV/0!
Gap/(Surplus)		$0	#DIV/0!	#DIV/0!
TOTAL SOURCES	#DIV/0!		#DIV/0!	#DIV/0!

Permanent Sources				
First Mortgage (Lender:)	#DIV/0!		#DIV/0!	#DIV/0!
Second Mortgage (Lender:)		$0	#DIV/0!	#DIV/0!
Third Mortgage (Lender:)		$0	#DIV/0!	#DIV/0!
Fourth Mortgage (Lender:)		$0	#DIV/0!	#DIV/0!
Other source (Specify:)		$0	#DIV/0!	#DIV/0!
LIHTC Equity		$0	#DIV/0!	#DIV/0!
Deferred Developer's Fee	#DIV/0!		#DIV/0!	#DIV/0!
Developer Equity		$0	#DIV/0!	#DIV/0!
Other source (Specify:)		$0	#DIV/0!	#DIV/0!
Gap/(Surplus)		$0	#DIV/0!	#DIV/0!
TOTAL SOURCES	#DIV/0!		#DIV/0!	#DIV/0!

Uses				
Acquisition Cost		$0	#DIV/0!	#DIV/0!
Construction Cost		$0	#DIV/0!	#DIV/0!
Soft Cost	#DIV/0!		#DIV/0!	#DIV/0!
Developer's Fee		$0	#DIV/0!	#DIV/0!
TOTAL USES	#DIV/0!		#DIV/0!	#DIV/0!

97 West 169th Street RFP
Site: **Units:** **0**

DEVELOPMENT BUDGET

			Developer Costs		
Acquisition Cost			-		
Construction Cost					
Contractor Price					
Residential	#DIV/0!	/du		#DIV/0!	psf
Commercial Space				#DIV/0!	psf
Community Space				#DIV/0!	psf
Parking				#DIV/0!	psf
Contingency			-		
Total Hard Cost	#DIV/0!	/du	-	#DIV/0!	average per sf
Soft Cost					
Borrower's Legal					
Borrower's Engineer/Architect Fees					
Accounting & Cost Certification					
Housing/Development Consultant					
Bank's Engineer					
Bank Legal					
Permits and expediting					
Environmental Phase I & II					
CEQR					
Borings					
Survey					
Geotechnical					
Title Insurance					
Appraisal					
Other (Specify:_____)					
Subtotal			**$0**		
Financing Fees (Please maintain links to original calculations and note any changes)					
Upfront L/C Fee		of LOC amt	#DIV/0!		
Annual L/C Fee		of LOC amt	#DIV/0!		
HDC Fee (if applicable)		of HDC cons 1st	#DIV/0!		
NY State Bond Issuance Charge		of HDC cons 1st	#DIV/0!		
Costs of Issuance		of HDC cons 1st	#DIV/0!		
HPD Fee (if applicable)					
Interest Rate Cap (estimate)					
Tax Exemption/Abatement Fees & Consultant					
LIHTC Application Fee					
Non Profit Sponsor					
Other (Specify:_____)					
Subtotal			**#DIV/0!**		
Carrying Costs					
Construction Interest			#DIV/0!	(change link if assuming variable rate)	
Negative Arbitrage			#DIV/0!		
Mortgage Recorting Tax					
Water/Sewer & Real Estate Taxes					
Utilities					
Insurance					
Construction Monitor					
Marketing					
Security					
Other (Specify:_____)					
Subtotal			**#DIV/0!**		
Reserves and Contingency					
Social Service Reserve					
Capitalized Operating Reserve		/unit	-		
Additional Operating Reserve (if applicable)					
Soft Cost Contingency				#DIV/0!	of soft costs
Subtotal			**-**		
Total Soft Costs			**#DIV/0!**		
Developer's Fee				#DIV/0!	of TDC less Dev Fee
Total Development Cost:			**#DIV/0!**		

Construction Sources

First Mortgage (Lender:)	#DIV/0!	#DIV/0!
Second Mortgage (Lender:)	-	#DIV/0!
Third Mortgage (Lender:)	-	#DIV/0!
Fourth Mortgage (Lender:)	-	#DIV/0!
LIHTC Equity		#DIV/0!
Deferred Developer's Fee		#DIV/0!
Developer Equity		#DIV/0!
Other source (Specify:)		#DIV/0!
Gap/(Surplus)	#DIV/0!	#DIV/0!
Total	#DIV/0!	#DIV/0!

Permanent Sources

First Mortgage (Lender:)	#DIV/0!	#DIV/0!
Second Mortgage (Lender:)	-	#DIV/0!
Third Mortgage (Lender:)	-	#DIV/0!
Fourth Mortgage (Lender:)	-	#DIV/0!
LIHTC Equity		#DIV/0!
Deferred Developer's Fee	#DIV/0!	#DIV/0!
Developer Equity		#DIV/0!
Other source (Specify:_____)		#DIV/0!
Gap/(Surplus)	#DIV/0!	#DIV/0!
Total	#DIV/0!	#DIV/0!

97 West 169th Street RFP
Site: **Units:** **0**

CONSTRUCTION INTEREST

Bond Amount		% of bond
Long Term Amount	#DIV/0!	#DIV/0!
Short Term Amount	#DIV/0!	#DIV/0!
Total Bond Amount	**#DIV/0!**	

Term	Months	Years
Construction term		0.00
Rent-up & conversion term		0.00
Total term	0	0.00

Fixed Rates

Long Term	
Short Term	
2nd Construction	
3rd Construction	
4th Construction	

Variable Rate

SIFMA	0.00%
+___ bps cushion	0.00%
Variable Rate	0.00%

Interest Calculations

Fixed Rate	Amount	% Outstanding	Term (years)	Interest Rate	Interest
1st - Short Term	#DIV/0!	50%	0.0	0.00%	#DIV/0!
	#DIV/0!	100%	0.0	0.00%	#DIV/0!
1st - Long Term	#DIV/0!	50%	0.0	0.00%	#DIV/0!
	#DIV/0!	100%	0.0	0.00%	#DIV/0!
2nd Construction	$0	100%	0.0	0.00%	$0.00
3rd Construction	$0	100%	0.0	0.00%	$0.00
4th Construction	$0	100%	0.0	0.00%	$0.00
			Total Fixed Rate Cons. Interest		**#DIV/0!**

Variable Rate	Amount	% Outstanding	Term (years)	Interest Rate	Interest
HDC 1st	#DIV/0!	50%	0.0	0.00%	#DIV/0!
	#DIV/0!	100%	0.0	0.00%	#DIV/0!
HDC 2nd	$0	100%	0.0	0.00%	$0.00
	$0	100%	0.0	0.00%	$0.00
			Total Variable Rate Cons. Interest		**#DIV/0!**

NEGATIVE ARBITRAGE
(for fixed-rate deals only)

Investment Rate	

	Short Term	Long Term
Rate	0.00%	0.00%
Short Term Amount	#DIV/0!	#DIV/0!
% Outstanding	50%	50%
Investment Spread	0.00%	0.00%
Construction Term (years)	0.00	0.00
	#DIV/0!	#DIV/0!
Negative Arbitrage	**#DIV/0!**	

LETTER OF CREDIT AMOUNT

Bond Amount		#DIV/0!
Days Interest		#DIV/0!
LC Amount		**#DIV/0!**

97 West 169th Street RFP
Site: **Units:** 0

SF DISTRBUTION

GSF		Efficiency	NSF
#DIV/0!	Residential GSF	#DIV/0!	0
#DIV/0!	Commercial GSF	100%	0
#DIV/0!	Community GSF	100%	0
#DIV/0!	Parking GSF	100%	0

0 Total Project GSF **0 Total Project NSF**

UNIT DISTRBUTION

	# of Units	# of Rms/ DU	# Rooms	Average Net SF per Unit
Studio	0	2	0	
1 Bedroom	0	3	0	
2 Bedroom	0	4	0	
3 Bedroom	0	5	0	
Subtotal	**0**		**0**	
Super's Unit			0	
Total	**0**		**0**	**0** Net Residential Square Feet
				#DIV/0! Average Net SF per DU

COMMERICAL AND ANCILLARY INCOME

	# of Spaces	Monthly Rent	Annual Income
Parking (Monthly Parkers)			$0
Transient Parkers			$0
Total Parking			$0

	Total s.f.	Annual Rent/s.f.	Annual Income
Commercial	0		$0

	Total s.f.	Annual Rent/s.f.	
Community	0		$0

	# units	Annual per unit	Annual Income
Laundry	0		$0

Total Commercial & Ancillary Income **$0** #DIV/0!

RESIDENTIAL INCOME

2018 HUD Income Limits	**104,300**	Family of Four
	1,637	2 BR FMR

Select Utility Allowance: Electricity (WITH Electric Stove) Allowance

		Electricity (No Electric Stove) Allowance	Electricity (WITH Electric Stove) Allowance	Gas Allowance
2 rooms	studio	55	68	18
3 rooms	1 BR	57	72	19
4 rooms	2 BR	58	76	19
5 rooms	3 BR	74	95	20

Note: For market rate units, please hard code rents

30% **HUD IL** 31,290 **Our Space With Shelter Rents**

Unit size	HH size	HH factor	HH income	max gross monthly rent	utility allowance	max net monthly rent	Number of units	Annual Rent
studio	1	0.60	18,774	469	-68	215		-
1 BR	1.5	0.75	23,468	587	-72	283		-
2 BR	3	0.90	28,161	704	-76	425		-
3 BR	4.5	1.04	32,542	813	-95	512		-
							0	-

27% **HUD IL** 28,161

Unit size	HH size	HH factor	HH income	max gross monthly rent	utility allowance	max net monthly rent	Number of units	Annual Rent
studio	1	0.60	16,897	422	-68	354		-
1 BR	1.5	0.75	21,121	528	-72	456		-
2 BR	3	0.90	25,345	633	-76	557		-
3 BR	4.5	1.04	29,287	732	-95	637		-
							0	-

37% **HUD IL** 38,591

Unit size	HH size	HH factor	HH income	max gross monthly rent	rent less electricity	max net monthly rent	Number of units	Annual Rent
studio	1	0.60	23,155	579	-68	511		-
1 BR	1.5	0.75	28,943	724	-72	652		-
2 BR	3	0.90	34,732	868	-76	792		-
3 BR	4.5	1.04	40,135	1,004	-95	909		-
							0	-

47% **HUD IL** 49,021

Unit size	HH size	HH factor	HH income	max gross monthly rent	rent less electricity	max net monthly rent	Number of units	Annual Rent
studio	1	0.60	29,413	736	-68	668		-
1 BR	1.5	0.75	36,766	920	-72	848		-
2 BR	3	0.90	44,119	1,103	-76	1,027		-
3 BR	4.5	1.04	50,982	1,275	-95	1,180		-
							0	-

57% **HUD IL** 59,451

Unit size	HH size	HH factor	HH income	max gross monthly rent	rent less electricity	max net monthly rent	Number of units	Annual Rent
studio	1	0.60	35,671	892	-68	824		-
1 BR	1.5	0.75	44,588	1,115	-72	1,043		-
2 BR	3	0.90	53,506	1,338	-76	1,262		-
3 BR	4.5	1.04	61,829	1,546	-95	1,451		-
							0	-

80% **HUD IL** 83,440

Unit size	HH size	HH factor	HH income	max gross monthly rent	rent less electricity	max net monthly rent	Number of units	Annual Rent
studio	1	0.60	50,064	1,253	-68	1,185		-
1 BR	1.5	0.75	62,580	1,566	-72	1,494		-
2 BR	3	0.90	75,096	1,878	-76	1,802		-
3 BR	4.5	1.04	86,778	2,170	-95	2,075		-
							0	-

100% **HUD IL** 104,300

Unit size	HH size	HH factor	HH income	max gross monthly rent	rent less electricity	max net monthly rent	Number of units	Annual Rent
studio	1	0.60	62,580	1,566	-68	1,498		-
1 BR	1.5	0.75	78,225	1,957	-72	1,885		-
2 BR	3	0.90	93,870	2,347	-76	2,271		-
3 BR	4.5	1.04	108,472	2,713	-95	2,618		-
							0	-

Market Rate

Unit size	Monthly Rent	Number of units	Annual Rent
studio			-
1 BR			-
2 BR			-
3 BR			-
			-
	Total units	0	
	Total Annual Rental Income upon occupancy		**-**
	TOTAL ANNUAL PROJECT INCOME		**-**

97 West 169th Street RFP
Site: **Units:** **0**

MAINTENANCE & OPERATING EXPENSES

0	Units
0	Rooms

Expenses			**per rm/du**	
Supplies/Cleaning/Exterminating	$	-		per room
Heating	$	-		per room
Gas & Electricity	$	-		per room
Cooking Gas	$	-		unit
Repairs/Replacement	$	-		per unit
Legal	$	-		per unit
Accounting	$	-		per project
Painting	$	-		per room
Superintendent & Maintenance Staff Salaries		$0	#DIV/0!	per unit
Number of:				
F/T super(s)		$0		annual + fring
porters		$0		annual + fring
Elevator Maintenance & Repairs	$	-		per elevator
Management Fee	$	-		of ERI
Water & Sewer	$	-		per room
Fire and Liability Insurance	$	-		per unit
Other Expenses(Specify:_____)	$	-		per unit
Other Expenses(Specify:_____)	$	-		per unit
Replacement Reserve	$	-		per unit
Social Service Reserve	$	-		per unit
M & O Before Taxes and Debt Service	**$**	**-**		**Total**
			#DIV/0!	**per room**
			#DIV/0!	**per unit**
Real estate taxes				
TOTAL ANNUAL PROJECT EXPENSES		**$0**		
	#DIV/0!			**per unit**
	#DIV/0!			**per room**

97 West 169th Street RFP
Site:

Units: **0**

MORTGAGE SIZING

Determination of Maximum Insurable Mortgage
based on net available for debt service and land taxes

Income			
Residential Income			$0
Less Residential Vacancies			$0
Net Residential Income			*$0*
Parking Income			$0
Commercial Income			$0
Community Space Income			$0
Ancillary/Laundry			$0
Less Parking Vacancies			$0
Less Commercial Vac			$0
Less Community Space Income			$0
Less Ancillary/Laundry Vac			$0
Net Comm & Ancillary Income			*$0*
Net Income			**$0**
Expenses			
Maintenance/Operating	#DIV/0!	per unit	$0
Real estate taxes	#DIV/0!	per unit	$0
Replacement Reserve	#DIV/0!	per unit	$0
Total Expenses	**#DIV/0!**	**per unit**	**$0**
NET OPERATING INCOME			**$0**
Net Available @1.05 Income to Expense			$0
Combined DSCR			
Net Available for Debt Service @			#DIV/0!
Income to Expense			#DIV/0!
1st Mort DSCR			
Net Available for Debt Service @			#DIV/0!
Income to Expense			#DIV/0!

Variable Interest Rates		**Fixed Interest Rates**	
			TAX EXEMPT
Base Rate		Base Underwriting Rate	
Underwriting Cushion		Servicing Fee	
LC Fees		MIP	
Trustee		Sum of above rates	0.00%
Remarketing			
Servicing			
	0.00%		

Total Supportable First Mortgage		Enter 1st Mortgage Amount from Cell H30 here
Second Mortgage	$ -	
Third Mortgage	$ -	
Fourth Mortgage	$ -	
Total Combined Debt	$ -	

	1st Loan Reduction	2nd Loan Constant	3rd Loan Constant	4th Loan Constant	
	1st Loan	2nd Loan	3rd Loan	4th Loan	Total
	#DIV/0!	$ -	$0	$0	#DIV/0!
Rate	0.00%				
Term					
Yrs 1 - 30 Amt Amortized	#DIV/0!	$0	$0	$0	
Balance	$0	$0	$0	$0	
Balloon %	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	
Debt Service	#DIV/0!	-	-	-	#DIV/0!
Debt Coverage	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!

Assumed Subsidies

2nd Loan	Source:		/du
3rd Loan	Source:		/du
4th Loan	Source:		

97 West 169th Street RFP
Site:

Units: **0**

	increases	Year 1	Year 2	Year 3	Year 4	Year 5	Year 6	Year 7	Year 8	Year 9	Year 10	Year 11	Year 12	Year 13	Year 14	Year 15
EFFECTIVE INCOMES																
Residential Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Parking Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Commercial Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Community Space Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Ancillary Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Total Income		**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**
EXPENSES																
M&O Expenses		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Building Reserve		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Total Expenses		**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**
NOI		**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**
Debt Service		#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!
Net Cash Flow		**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**
Net Cash Flow in 15 years		**#DIV/0!**														

97 West 169th Street RFP
Site:

	increases	Year 16	Year 17	Year 18	Year 19	Year 20	Year 21	Year 22	Year 23	Year 24	Year 25	Year 26	Year 27	Year 28	Year 29	Year 30
EFFECTIVE INCOMES																
Residential Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Parking Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Commercial Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Community Space Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Ancillary Income		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Total Income		**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**
EXPENSES																
M&O Expenses		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Building Reserve		0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Total Expenses		**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**
NOI		**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**	**0**
Debt Service		#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!	#DIV/0!
Net Cash Flow		**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**	**#DIV/0!**

Net Cash Flow in 15 years

97 West 169th Street RFP
Site: **Units:** -

TAX CREDIT ANAYLSIS*
**This is an estimate; for actual raise and calculation, defer to LIHTC Investor*

	Eligible Cost (Y/N)	Total Cost	Eligible Amount
Acquisition Cost	N	-	
Construction Cost			
Contractor Price			
Residential	Y	-	
Commercial Space	N	-	
Community Space	Y	-	
Parking	N	-	
Contingency	Y	-	
Total Hard Cost		**-**	**-**
Soft Cost			
Borrower's Legal	Y	-	
Borrower's Engineer/Architect Fees	Y	-	
Accounting & Cost Certification	Y	-	
Housing/Development Consultant	Y	-	
Bank's Engineer	Y	-	
Bank Legal	Y	-	
Permits and expediting	Y	-	
Environmental Phase I & II	Y	-	
CEQR	Y	-	
Borings	Y	-	
Survey	Y	-	
Geotechnical	Y	-	
Title Insurance	Y	-	
Appraisal	N	-	
Subtotal		**-**	**-**
Financing Fees (Please maintain links to original calculations and note any changes)			
Upfront L/C Fee	Y	#DIV/0!	
Annual L/C Fee	Y	#DIV/0!	
HDC Fee (if applicable)	N	#DIV/0!	
Costs of Issuance	N	#DIV/0!	
HPD Fee (if applicable)	N	-	
Interest Rate Cap (estimate)	N	-	
Tax Exemption/Abatement Fees & Consultant	Y	-	
LIHTC Application Fee	N	-	
Non Profit Sponsor	Y	-	
Subtotal		***#DIV/0!***	**-**
Carrying Costs			
Construction Interest	Y	#DIV/0!	
Negative Arbitrage	N	#DIV/0!	
Mortgage Recorting Tax	N	-	
Water/Sewer & Real Estate Taxes	Y	-	
Utilities	Y	-	
Insurance	Y	-	
Construction Monitor	Y	-	
Marketing	N	-	
Security	Y	-	
Subtotal		***#DIV/0!***	**-**
Reserves and Contingency			
Social Service Reserve	N	-	
Capitalized Operating Reserve	N	-	
Additional Operating Reserve (if applicable)	N	-	
Soft Cost Contingency	Y	-	
Subtotal		**-**	**-**
Total Soft Costs		***#DIV/0!***	**-**
Developer's Fee	Y	-	
Total Development Cost:		**#DIV/0!**	**-**

Number of TC Units	
% TC Units	#DIV/0!
% Non Residential Costs	#DIV/0!
Aplicable Fraction	#DIV/0!
Construction Bonds	#DIV/0!

Eligible Basis		-
Eligible Basis per TC Unit		#DIV/0!
Eligible Basis with Boost		-
Annual Credit @		-
Amount Raised per Credit @		-
Amount Raised Total		-

97 West 169th Street RFP **Units:** **0**
Site:

	TRADE ITEM	$ AMOUNT
1	Demolition	
2	Environmental Remediation	
3	Railroad trench deck (Site B only)	
4	Landscaping / Site Work	
5	Concrete	
6a	Masonry, pointing, waterproofing, steam cleaning	
6b	Carpentry, rough	
7	Carpentry, finished	
8	Metals, structural steel	
9	Roofing	
10	Insulation	
11	Doors, frames, hardware	
12	Windows and glazing	
13	Entrance doors	
14	Drywall and plastering	
15	Ceramic tile	
16	Finish flooring	
17a	Painting	
17b	Kitchen cabinets	
18	Applicances, medicine cabinet	
19	Heating and ventilation	
20	Plumbing	
21	Electrical	
22	Other:_____	
23	Other:_____	
24	Other:_____	
25	**SUBTOTAL**	$0
26	General Conditions	
27	Overhead	
28	Profit	
29	**GRAND TOTAL**	$0

97 West 169th Street RFP **Units: 0**

Site:

These calculations must match the architectural plans included in the proposal.

TOTAL BUILT FLOOR AREA (Gross Square Feet):

Total building stories	
Total Parking Spaces	
Parking Type (i.e.- surface, covered, garage)	
1. Residential Space	
2. Accessory Social and Welfare Facilities	
3. Amenities	
4. Unfinished Basement	
5. Cellar	
6. Attics	
7. Circulation and Mechanical / Utility Areas	
8. Garages	
9. Commercial Space	
10. Community Facility Space	
11. Open Space	
12. Parking	
13. Other _____	
11. Subtotal Gross Square Feet	**0**

Form I: Assets Statement

I- Assets Statement (Tab I)

[Assets Statement must describe financial status within the last twelve months and must be dated and signed.]

Principal or Individual whose assets are described below:

---

1. Personal Information

Name:

Business Name:

Business Phone:

Residence Address:
City:
State:
Zip Code:

Business Address:
City:
State:
Zip Code:

Position (Title):

Years of Service:

Salary:
Bonus/Commission:

Other Income:
Source of Other Income:

Are you a defendant in any lawsuits or legal action that may impact your financial standing?
If so, please describe:

Do you have any contingent liabilities?
If so, please describe:

2. Statement of Financial Condition

Assets	Dollars (omit cents)	Liabilities	Dollars (omit cents)
Cash On Hand and in Banks		Notes Payable to Banks *Secured*	
Notes Receivable		Notes Payable to Banks *Unsecured*	
Mortgages Owned		Notes Payable to Others *Secured*	
		Notes Payable to Others *Unsecured*	
Marketable Securities Owned See **Schedule A**		Debt Balances in Margin Accounts with Brokers	
Real Estate Owned		Mortgages on Real Estate	
Cash Value of Life Insurance		Loans Against Life Insurance	
Other Assets* (Itemize)		Other Liabilities (Itemize)	
Total Assets		**Total Liabilities**	
		Net Worth	

* Any interest in a closely held business must be documented by providing a current balance sheet for that business and stating the percent of interest held by the applicant.

Schedule A: Marketable Securities Owned

List separately and check (X) next to those pledged as collateral.

Marketable Securities Owned	Dollars (Omit Cents)	Collateral?

3. Signature Page

You, the undersigned hereby represent the above to be a true and accurate Statement signed as of the date herein.

Name of Principal: _____

Signature of Individual: _____

Print Name and Title of Individual: _____

Date: _____